Army Regulation 600–8–10

Personnel-General

Leaves and Passes

Headquarters
Department of the Army
Washington, DC
3 June 2020

UNCLASSIFIED

Summary of Change

AR 600–8–10
Leaves and Passes

This major revision, dated 3 June 2020—

- Allows Reserve Component Soldiers to carry over accumulated leave from a period of active service to another period of active service (para 2–2*e*(10)).
- Updates leave and pay policies (paras 2–4, 3–3, and 5–3).
- Updates travel clearance requirements (paras 2–11 and 2–12).
- Updates special leave accrual (chap 3).
- Allows Department of Defense identification number in place of the social security account number on all leave-related actions (paras 4–10*b*(9)(*a*) and 5–12*c*(12)(*c*)3).
- Adds information on permanent change of station leave (para 4–7).
- Updates consecutive overseas tour/in-place consecutive overseas tour (para 4–8).
- Updates non-chargeable rest and recuperation leave (paras 4–12 and 5–16).
- Allows retiree recalls to carry over leave to the next period of active service (para 4–14).
- Adds table for leave control number (table 4–2).
- Updates categories of administrative absences (chap 5).
- Updates convalescent leave, adding requirement for DA Form 3349 (Physical Profile) (paras 5–4 and 5–5).
- Rescinds Army Directive 2019–05 (Army Military Parental Leave Program), dated 22 January 2019 (para 5–5).
- Rescinds Army Directive 2013–24 (Extending Benefits to Same-Sex Spouses of Soldiers), dated 7 November 2013 (para 5–11).
- Updates post deployment or mobilization respite absence (para 5–12*c*(8)).
- Revises policy for use of accrued leave as transition leave for Soldiers pending medical retirement or separation (para 6–1).
- Updates pass policy (chap 7).
- Changes the term “permissive TDY” to “administrative absence” or “leave of absence” (throughout).

Headquarters
Department of the Army
Washington, DC
3 June 2020

*Army Regulation 600–8–10

Effective 3 July 2020

Personnel-General

Leaves and Passes

By Order of the Secretary of the Army:

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General, United States Army
Chief of Staff

Official:

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Administrative Assistant
to the Secretary of the Army

History. This publication is a major revision.

Summary. This regulation covers the Leaves and Passes Program. It prescribes policies and operating tasks governing military personnel absences.

Applicability. This regulation applies to the Regular Army, the Army National Guard/Army National Guard of the United States, and the U.S. Army Reserve, unless otherwise stated.

Proponent and exception authority. The proponent of this regulation is Deputy Chief of Staff, G–1. The proponent has the authority to approve exceptions or waivers to this regulation that are consistent with controlling law and regulation. The proponent may delegate this approval authority, in writing, to a division chief within the proponent agency or its direct reporting unit or field operating agency, in the grade of colonel or the civilian equivalent. Activities may request a waiver to this regulation by providing justification that includes a full analysis of the expected benefits and must include formal review by the activity's senior legal officer. All waiver requests will be endorsed by the commander or senior leader of the requesting activity and forwarded through their higher headquarters to the policy proponent. Refer to AR 25–30 for specific guidance.

Army internal control process. This regulation contains internal control provisions in accordance with AR 11–2 and identifies key internal controls that must be evaluated (see appendix B).

Supplementation. Supplementation of this regulation and establishment of command and local forms are prohibited without prior approval from the Deputy Chief of Staff, G–1 (DAPE–PRC) at email usarmy.pentagon.hqda-dcs-g-1.mbx.dape-prctravel@mail.mil.

Suggested improvements. Users are invited to send comments and suggested improvements on DA Form 2028 (Recommended Changes to Publications and Blank Forms) directly to Headquarters, Department of the Army, Deputy Chief of Staff, G–1 (DAPE–PRC), 300 Army Pentagon, Washington, DC 20310–0300, or email at usarmy.pentagon.hqda-dcs-g-1.mbx.dape-prctravel@mail.mil.

Distribution. This regulation is available in electronic media only and is intended for the Regular Army, the Army National Guard/Army National Guard of the United States, and the U.S. Army Reserve.

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Glossary

Chapter 1
Introduction

1–1. Purpose

This regulation prescribes the policies and mandated operating tasks for military absences, including leave, pass, and administrative absence. This regulation is binding on all entities involved in granting leave, pass, and other forms of absence from duty.

1–2. References and forms

See appendix A.

1–3. Explanation of abbreviations and terms

See the glossary.

1–4. Responsibilities

a. Assistant Secretary of the Army (Manpower and Reserve Affairs). The ASA (M&RA) will provide strategic guidance and supervision for policies, plans, and programs executed by the Deputy Chief of Staff (DCS), G–1.

b. Deputy Chief of Staff, G–1. The DCS, G–1 will—

(1) Establish personnel policies relating to leave and pass programs, and other absences from duty.

(2) Approve requests for convalescent leave (CLV) travel outside the continental United States (OCONUS) in unusual or questionable cases.

(3) Process and obtain approval from the Office of the Secretary of Defense to establish rest and recuperation (R&R) leave programs in hostile fire or imminent danger areas.

(4) Process and obtain approval for exceptions to policy relating to leave and pass programs and other programs and policies relating to absence from duty.

(5) Ensure that the Commanding General, U.S. Army Human Resources Command (HRC) will—

(a) Develop procedures for leave, pass, and other absence-related functions.

(b) Establish standards and mandate operating tasks of the leave and pass functions.

(c) Establish standards and mandate operating tasks for other absences from duty.

(d) Approve and/or disapprove requests for leave and pass periods consistent with law, Department of Defense (DoD) policy, and this regulation, and may delegate the authority to approve leave to chiefs of divisions, branches, and sections of any headquarters or activity.

(e) Consider requests for—

1. Reinstatement of leave based on special leave accrual (SLA).
2. Advanced leave exceeding 30 days.
3. Leave for more than 60 days that includes excess leave.
4. Administrative absence exceeding 30 days.
5. Administrative absence exceeding ten days for any continental United States (CONUS) Soldier designated as a nonmedical attendant.
6. Leave extension or temporary attachment for Soldiers experiencing emergency situations while travelling to new permanent duty stations (PDS).
7. Administrative absence for Soldiers in education programs to conduct research distant from schools of assignment.

(f) Appoint designated approval authorities for subparagraph 1–4*b*(5)(*e*), as necessary.

c. Commanders of Army commands, Army service component commands, and direct reporting units. The commanders of ACOMs, ASCCs, and DRUs will—

(1) Monitor and assist in administering military absence programs to ensure uniform compliance with policies and mandated tasks established by this regulation.

(2) Approve requests for leave and pass periods consistent with law, DoD policy, and this regulation, or delegate such authority to chiefs of divisions, branches, and sections of subordinate headquarters or activities.

d. Principal officials of Department of the Army agencies. Principal officials of DA agencies will approve requests for leave and pass periods consistent with law, DoD policy, and this regulation and may delegate the authority to approve leave to chiefs of divisions, branches, and sections of any headquarters or activity.

e. Commanders of installations, including companies and separate detachments. Commanders will approve requests for leave and pass periods and may delegate authority to chiefs of divisions, branches, and sections of any headquarters or activity. The restrictions in this regulation or those imposed by higher headquarters must be met.

f. Commandant, Adjutant General School. The Commandant, Adjutant General School will establish and teach a course of instruction on processing procedures for leave, pass, and other absences from duty.

g. Commanders of installations, communities, and mobilization stations. The commanders of installations, communities, and mobilization stations will establish, staff, and operate a leave and pass program that accomplishes the requirements established in this regulation.

h. Officers in commands, major headquarters, and the military departments. Officers in commands, major headquarters, and the military departments will ensure that secondary and nonessential efforts that would work to prevent execution of an aggressive leave program are not imposed.

i. Soldiers. The Soldiers will request and take leave in accordance with program objectives and follow guidelines and processing procedures for their absences.

j. Supervisors. The supervisors, when approval authority is delegated to this level, will approve or deny requests for leave and other absences from duty within the established guidelines of this regulation.

k. Chiefs of Personnel Offices. The Chief of the Personnel Office (usually the Personnel Administration Center, but offices will vary based on unit structure and size) will—

(1) Establish and maintain the DA Form 4179 (Leave Control Log), in accordance with existing policies and procedures.

(2) For ordinary leave, not involving official travel, determine chargeable leave.

(3) Resolve problems with chargeable leave when official travel is not a factor.

l. Unit commanders. The unit commanders will establish processing procedures to ensure compliance with existing policies and procedures.

m. Finance officers. The finance officers will—

(1) Ensure leave is correctly computed when official travel is involved.

(2) Ensure chargeable leave is correctly posted to the leave and earnings statement (LES).

1–5. Records management (recordkeeping) requirements

The records management requirement for all record numbers, associated forms, and reports required by this regulation are addressed in the Army Records Retention Schedule-Army (RRS–A). Detailed information for all related record numbers, forms, and reports are located in Army Records Information Management System (ARIMS)/RRS–A at https://www.arims.army.mil. If any record numbers, forms, and reports are not current, addressed, and/or published correctly in ARIMS/RRS–A, see DA Pam 25–403 for guidance.

1–6. Statutory authority

a. Leave for members of the Armed Forces is governed by Title 10, United States Code, Chapter 40 (10 USC Chapter 40) and Section 876a, Title 10, United States Code (10 USC 876a).

b. Pay and allowances provisions pertaining to leave status are governed by 37 USC 310, 501, 502, 503, and 504 and 10 USC 707.

1–7. Manpower resources

The Manpower Staffing Standards System includes the military personnel function of military absence, including leave, pass, and other absence from duty, at the battalion S1 (BN S1) work center. Workload factors will be used to determine manpower authorizations.

1–8. Levels of work

Most personnel work in the field is performed at four primary levels: unit, battalion, brigade, and installation. This regulation provides guidance to those levels and prescribes the work center required to perform the work for manpower purposes.

1–9. Principles of support

The Military Personnel System will direct a function to provide Soldiers maximum use of leave to support health, morale, motivation, and efficiency, and to support the Army's personnel life cycle function of sustainment.

1–10. Standards of service

a. The Leaves and Passes Program is a wartime and peacetime function that is resourced in tables of organization and equipment at the battalion and brigade level and in tables of distribution and allowance at the installation level.

b. The program accompanies the tactical force when deployed, and is an essential personnel services responsibility with oversight maintained by G-1s at all levels with functions and/or tasks normally executed at brigade S–1 and below.

Chapter 2
Policy for Leave

2–1. Military requirement for leave

a. Army leave policies are an important command requirement and care must be taken to prevent misuse of leave, pass, and other forms of absence from duty.

b. Judicious use of leave makes a positive contribution to morale, level of performance, and career motivation.

c. Leave and other absences from duty must be granted within the constraints of operational military requirements.

2–2. Annual leave program

a. The intent of the Leaves and Passes Program is for Soldiers to use authorized leave to the maximum extent possible.

b. Caution to Soldiers—

(1) Soldiers are responsible for tracking and managing their own leave.

(2) Soldiers who do not use leave may lose leave at the end of the fiscal year (FY).

(3) Soldiers who routinely maintain large leave balances risk loss of leave if the operational situation (training, temporary duty (TDY), illness, injury, and schools) prevents use of leave before the end of the FY.

(4) Soldiers who build large leave balances in preparation for retirement or separation from service risk losing leave if the separation date is in the first quarter of a new FY.

c. Commanders will—

(1) Establish policies and procedures for leave, pass, and administrative absences that—

(a) Provide equal treatment of officers and enlisted members (per 10 USC 704).

(b) Provide respite from the work environment in ways that will contribute to improved performance and increased motivation.

(c) Ensure maximum use of earned leave, minimize the loss of leave, and reduce the cost of payments for unused accrued leave.

(2) Encourage and assist all Soldiers to use, on the average, 30 days of accrued leave each year.

(3) Provide Soldiers with opportunities to take frequent periods of leave, with at least one extended leave period each year of approximately 14 consecutive days or longer, within constraints of operational requirements in accordance with DoDI 1327.06.

(4) Allow Soldiers to take authorized time to tend to emergency situations and other purposes as outlined in this regulation.

(5) Counsel Soldiers who refuse to take leave throughout the year regarding their obligation to execute military programs and policies. Counseling will include caution that such refusal may result in losing earned leave (per DoDI 1327.06).

d. A Soldier undergoing treatment for infectious or contagious disease will not be granted leave unless the attending physician verifies that the Soldier does not pose a threat to the public health. The Soldier's commander must receive written verification before granting leave.

e. To maximize use of leave, commanders will place emphasis on granting leave—

(1) Upon permanent change of station (PCS).

(2) After periods of arduous duty and protracted periods of deployment from the home station.

(3) Upon reenlistment or augmentation from active Reserve to active duty status.

(4) During traditional national holiday periods.

(5) When there is evidence of deteriorating health and/or morale.

(6) When Soldiers and/or their Families have been personally affected by natural disasters or emergencies.

(7) During specified "block leave" periods to all Soldiers in a given unit.

(a) Commanders may authorize all Soldiers in the unit to request leave during a specified period.

(b) Block leave will be charged as ordinary, accrued leave.

(c) Commanders will announce tentative block leave dates at least 60 days before the proposed block leave period, and announce actual dates as soon as operationally feasible.

(8) To attend spiritual retreats or other religious observances when a pass is inadequate or inappropriate.

(9) During pre-processing periods before retirement or other separation from active duty, when requested, and before the end of active duty for Soldiers pending retirement. However, Soldiers continued on or recalled to active duty may have leave (if accumulated during service before retirement) carried over to the post-retirement period of service.

(10) Before the end of an active duty tour for Reserve Component (RC) personnel. However, an RC Soldier who accumulates leave during a period of active service may carry over any leave so accumulated to the Soldier's next period of active service, subject to accumulation limits of 10 USC 701, without regard to separation or release from active service if the separation or release is under honorable conditions.

2–3. Leave accrual

a. Leave accrual is based on law (see 10 USC 701).

(1) Soldiers accrue leave at the rate of 2.5 calendar days for each month of active duty service.

(2) Soldiers may accrue and carry forward up to 60 days leave at the end of each FY.

(3) Temporary extensions allowed Soldiers to temporarily carry forward 75 days of leave from 1 October 2008 through 30 September 2015. However, accrued leave in excess of 60 days was lost at the start of subsequent FYs, beginning with 1 October 2015.

(4) Accrued leave exceeding 60 days is lost at the start of new FYs unless protected by SLA or when a Soldier is in a missing status (per 37 USC 551).

b. Soldiers will not accrue leave while—

(1) Absent without leave (AWL).

(2) On unauthorized absence.

(3) On excess leave.

(4) Confined as the result of a court-martial sentence. Leave does not accrue during military or civil confinement of more than one day if confinement is in connection with a court-martial sentence. Acquitted Soldiers will be credited with leave that would have accrued.

(5) On appellate leave, pending completion of the appellate review when the Soldier is sentenced by court-martial to a dismissal or to receive a punitive discharge, in accordance with 10 USC 876.

c. An RC Soldier accumulating leave during a period of active service may carry over any leave so accumulated to subsequent periods of active service (subject to accumulation limits of 10 USC 701), even if there is a break in service, if the separation or release is under honorable conditions.

2–4. Payment of accrued leave

a. Payment of accrued leave is made per DoD 7000.14–R.

b. For leave earned in a missing status, payment of accrued leave is made per 37 USC 501.

c. By law, payment of accrued leave is limited to 60 days during a military career, unless earned in a missing status or under 2–4*d* and *e*.

d. For Soldiers who die while in a missing status, settlement is made for leave days accrued to the actual date of death. Payment may exceed 150 days.

e. Payment for accrued leave earned by a RC Soldier, retired Reserve member, or retired Regular Army member while serving on duty in support of a contingency operation is made per 37 USC 501.

f. For Soldiers who die because of an injury or illness incurred while serving on active duty in support of a contingency operation—

(1) Settlement of accrued leave is made per 37 USC 501.

(2) Settlement of accrued leave is authorized regardless of leave previously sold.

g. Payment of accrued leave is made to Soldiers who elect partial payment and carry forward a balance to a new or extended reenlistment.

h. Payment for leave accrued in a preceding period of service is not authorized to Soldiers who elect to carry all leave forward to a new or extended reenlistment.

i. Certain members of Reserve Components, the retired Reserve, and retired members of the Regular Army may be paid for accrued leave in excess of 60 days per 37 USC 501 and DoD 7000.14–R.

2–5. Forfeiture of accrued leave

a. Soldiers discharged under other than honorable conditions must forfeit all accrued leave to their credit at the time of discharge per 37 USC 501.

b. Soldiers discharged before completing six months of active duty because of a failure to serve satisfactorily must forfeit all accrued leave to their credit at the time of discharge per 37 USC 501.

c. This section applies to all Soldiers, including those with prior military service (breaks in military service of 90 or more consecutive days) who are separated for—

(1) *Enlisted separation reasons.*

(a) Defective enlistments and inductions (minority and fraudulent entry only).

(b) Entry-level performance and conduct.

(c) Unsatisfactory performance.

(d) Drug and/or alcohol abuse rehabilitation failure.

(e) Misconduct; moral and/or professional dereliction.

(f) Separation in lieu of trial by court-martial.

(g) Security (unless the Soldier receives an honorable discharge).

(2) *Officer separation reasons.*

(a) Separation for cause (for example, officers separated for substandard performance of duty).

(b) Dropped from the rolls.

(c) Misconduct; moral and/or professional dereliction.

(d) Separation in lieu of trial by court-martial.

(e) Security (unless the Soldier receives an Honorable Discharge).

2–6. Subtracting leave credit

a. Subtract leave for lost time, excess leave, or other non-pay status.

b. Subtract 2.5 days leave for each full month of absence.

c. For partial-month absence, use table 2–1 to subtract leave.

Table 2–1
Partial-month leave credit

Day of month separated		
Or		
Days lost/Leave balance	Add credit/Subtract credit	Enlistment/Reenlistment/Add Credit
1 through 6	0.5 day	2.5 days
7 through 12	1 day	2 days
13 through 18	1.5 days	1.5 days
19 through 24	2 days	1 day
25 through 31	2.5 days	0.5 day

Notes:

[1] Reenlistment: If reenlisting within the same month as separation results in more than 2.5 days of leave credit for that month, subtract the leave credit received on separation from 2.5 days, to arrive at the remaining credit for the month.

[2] Example: A Soldier separating on 5 July receives 0.5 days of leave. If the Soldier reenlists on 6 July, credit with 2 days of leave (2.5 days monthly entitlement, minus 0.5 days received on separation, equals 2 days of leave entitlement remaining for that month).

2–7. Holiday leave

a. Commanders will provide for observance of official Federal holidays, but may restrict observance due to military operations.

b. Public holidays may be either chargeable or non-chargeable absences.

(1) If a Soldier's leave ends on a holiday, do not charge the day as leave.

(2) If a Soldier's leave begins on a holiday, charge the day as leave.

(3) Charge holidays as leave if they fall within the effective dates of leave (see DoDI 1327.06). For example, if a leave includes 10 through 12 November, Veterans Day is charged as leave.

c. Public holidays are established in 5 USC 6103—

(1) New Year's Day, 1 January.

(2) Birthday of Martin Luther King, Jr., the third Monday in January.

(3) President's Birthday, the third Monday in February.
(4) Memorial Day, the last Monday in May.
(5) Independence Day, 4 July.
(6) Labor Day, the first Monday in September.
(7) Columbus Day, the second Monday in October.
(8) Veterans Day, 11 November.
(9) Thanksgiving Day, the fourth Thursday in November.
(10) Christmas Day, 25 December.

d. Other holidays, when directed by proper authority under law.

e. When a holiday falls on Saturday, it is observed on the preceding Friday (see DoDI 1327.06).

f. When a holiday falls on Sunday, it is observed on the following Monday (see DoDI 1327.06).

g. See chapter 7 regarding regular pass (including three-day holiday weekends) and special pass (including four-day holiday weekends).

2–8. Weekends and regular days off

a. For leave starting on a non-duty day, the day of departure will be charged as a day of leave.

b. For leave ending on a non-duty day, the day of return is not charged as a day of leave.

c. If a weekend falls between a Soldier's departure date and return date, the weekend is charged as leave. Examples—

(1) If a leave request is for Thursday through Tuesday, the Soldier will be charged for six days of leave.

(2) If a Soldier submits one leave request for Thursday and Friday, and a second leave request for the following Monday and Tuesday, the leave requests should be disapproved. If the requests are inadvertently granted, the Soldier will be charged for six days of leave unless there was a sudden emergency of which the Soldier was not aware before returning from the first leave period.

2–9. Departure and arrival

a. Soldiers are not authorized to sign out on leave and will not depart the duty station (or the area from which they normally commute to and from work) until after 0001 on the "from" date on their DA Form 31 (Request and Authority for Leave).

b. See chapter 7 regarding passes.

c. Soldiers who work more than one-half of the "from" date on their DA Form 31 will not be charged leave for the day of departure, if it was a regularly scheduled duty day.

d. Soldiers must sign in before midnight on the "to" date on their DA Form 31, unless an extension was requested and approved.

e. If orders specify a reporting date, the Soldier must report no later than the reporting day and time specified in the orders.

2–10. Absence after leave or pass termination date

a. Soldiers absent from duty beyond an authorized period of absence will be reported absent without leave within 48 hours of the commander's inquiry that establishes there is no legitimate reason for the Soldier's absence (see AR 630–10).

b. When extended beyond authorized leave or pass dates, absences will not be charged as leave if caused by mental incapacity, detention by civil authorities, or early departure of a mobile unit due to operational commitments. Even if determined to be preventable, or excused as unavoidable, the days will not be charged as leave, regardless of duration (see AR 600–8–6 for duty status codes).

c. Pass termination—

(1) Absence beyond pass termination date is not chargeable leave if the entire period of authorized absence and excused unauthorized absence does not exceed three days (for example, a two-day pass may become a three-day pass).

(2) All absences beyond pass termination date are chargeable, except as noted in subparagraph *b* above, if the entire period of authorized and excused unauthorized absence exceeds three days. (For example, a twoor three-day pass may not become a four-day pass. It may become pass + ordinary leave, if excused as unavoidable.)

(3) All absences beyond pass termination date are chargeable, if the period of unauthorized absence is not excused as unpreventable. (For example, if it was preventable, the absence becomes pass + AWL.)

d. If the commander excuses the absence as unavoidable (see AR 630–10), reclassify absence from AWL to unavoidable and either issue or correct the DA Form 31, as appropriate.

(1) If issuing a new DA Form 31, note "absence excused as unavoidable" in block 17, and attach a copy of the determination statement before continuing to process the request.

(2) If correcting an existing DA Form 31, note "absence excused as unavoidable" in block 17 and continue processing the corrected form.

e. If the commander determines the absence was avoidable, charge AWL to the Soldier's leave account for the period of absence after the authorized leave/pass period.

2–11. Clearance for travel outside the United States

a. Departure will not be authorized (for example, the Soldier cannot sign out) until the Soldier is fully cleared for travel.

b. If travel clearance was not requested or was denied, request for leave or other absence must be disapproved.

c. All Soldiers planning to travel outside the United States for any reason must obtain clearance by using the DoD Foreign Clearance Guide (FCG) at https://www.fcg.pentagon.mil/.

d. Before approving foreign travel to a combat command, leaders must ensure that trip information has been entered in the Aircraft and Personnel Automated Clearance System (APACS). APACS will be used for all travelers to combat commands, not just those traveling on military aircraft. It is mandatory for processing DoD-sponsored foreign travel in all combatant commands.

e. All Soldiers traveling outside the United States will complete a digital isolated personnel report (ISOPREP) as required by AR 525–28 before departing the United States. This requirement includes personnel in any travel status, including but not limited to TDY, PCS, pass, administrative absence, temporary change of station (TCS), emergency leave, and/or any other leave status.

f. Soldiers traveling outside the territory or foreign country of current assignment, unless travel is to the United States or its territories, will complete an ISOPREP as required by AR 525–28 before departing their territory or foreign country of current assignment. This requirement includes personnel in any travel status, including but not limited to, TDY, PCS, pass, administrative absence, TCS, and/or leave status.

g. Soldiers desiring to take leave or travel from the United States to or within U.S. possessions of Puerto Rico, U.S. Virgin Islands, Guam, American Samoa, and Northern Mariana Islands do not require travel clearance unless the itinerary includes another foreign country. However, travel approval is required.

h. Soldiers desiring to take leave or travel from CONUS to Alaska or Hawaii do not require travel clearance unless the travel itinerary includes a foreign country, such as Mexico or Canada. However, travel approval is required.

i. The unit commander is usually the leave approval authority. However, general officers or installation commanders may delegate authority for leave to the travel clearance manager. Exceptions—

(1) Leave requests by general officers stationed overseas may be approved by their major overseas commander.

(2) Army component commanders stationed overseas will inform the Chief of Staff of the Army, when they expect to be absent from their commands in a leave or other absence status.

(3) Requests by general officers stationed in the United States will be submitted to the General Officer Management Office for approval.

(4) The Assistant Secretary of Defense (International Security Affairs) is final approval authority for Soldiers requesting to enter a country if no diplomatic relations exist between the United States and that country. Normally, submit in accordance with the Electronic Foreign Clearance Guide and APACS.

(a) Approvals will not be granted more than 60 days before the desired departure date.

(b) Blanket authority for an unlimited number of visits to a foreign country is prohibited.

2–12. Instructions for travel clearance

a. Travel clearance managers will develop and attach appropriate instructions to the DA Form 31 for absences outside the United States, including guidance in subparagraphs *b* and c, below.

b. Soldiers must carry the following documentation at all times while on leave:

(1) Common access card.

(2) Copy of approved DA Form 31.

(3) Evidence to prove that immunizations are current for the parts of the world being visited.

(4) Sufficient funds to defray travel expenses (including, but not limited to, transportation, meals, and lodging).

(5) Copy of country clearance approval, if applicable.

c. Written instructions which the travel manager must include—

(1) *Country laws.* Every Soldier is subject to the laws of each country while within its boundaries.

(2) *Passport and visa requirements.*

(3) *Civilian clothing and uniforms.*

(4) *Immunization requirements.*

(5) *Conscription laws.* When applicable, include the following: "Conscription laws exist and leave is approved even though you have not fulfilled the military obligation in the foreign country. You may not be allowed to leave the country where conscription laws exist until your military obligation is satisfied or special permission is granted by the foreign government."

(6) *Briefing requirements.*

(a) Defensive security, if required.

(b) Sensitive compartmented information, if required.

(c) Itinerary reporting requirements.

(d) High threat areas.

(e) Miscellaneous Information specific to traveler's proposed itinerary.

2–13. Assistance with foreign travel

a. Army Travel Assistance Center. The ATAC at HRC provides guidance, command and control, and emergency support for Soldiers in a PCS status and Family members traveling on official orders. ATAC helps to solve problems encountered in Army-sponsored travel such as leave extensions due to emergencies and changes in port call. The ATAC toll-free number is 1–800–582–5552.

b. The Foreign Clearance Guide.

(1) The FCG provides travel requirements for all official and personal travel.

(2) The FCG is available online at https://www.fcg.pentagon.mil/fcg.cfm.

c. Smart Traveler Enrollment Program.

(1) The Smart Traveler Enrollment Program (STEP) is a free service provided by the U.S. Government to U.S. citizens and nationals who are traveling to or living in a foreign country.

(2) STEP allows U.S. citizens and nationals to enter information about upcoming trips abroad so that the Department of State can better assist in case of an emergency.

(3) STEP also allows U.S. citizens and nationals residing abroad to get routine information from the nearest U.S. embassy or consulate.

Chapter 3
Special Leave Accrual

3–1. Content and intent

a. The intent of SLA is to provide relief to Soldiers not allowed leave due to lengthy deployment in hostile fire or imminent danger areas or during periods of hostility.

b. Soldiers may not carry forward more than 60 days of leave into a new FY (except when entitled to SLA or during the period 1 October 2008 through 30 September 2015, when 75 days could be carried forward).

c. Within limits and criteria established by 10 USC 701, leave accrued before and during qualifying deployments is protected under SLA.

d. Leave in excess of 60 days (75 days as noted in subpara *b*) is credited only for use, not for payment. It is lost if not used before its expiration date.

e. The expiration date for SLA-protected leave is the end of the third FY after the FY in which the qualifying service ended (end of the 4th FY if earned between 1 October 2008 and 30 September 2015).

f. The Secretary of the Army may identify overseas operations and areas where Soldiers are eligible for SLA.

3–2. Authorization

a. SLA is authorized to Soldiers serving in qualifying areas for at least 120 continuous days. See DoD 7000.14–R for hostile fire pay (HFP) and imminent danger pay (IDP) locations.

b. Soldiers assigned to a designated deployable ship, designated mobile unit, or other similar prescribed duty may be authorized SLA if operational requirements prevented use of leave.

c. Soldiers in the hospital for 120 or more consecutive days, for illness or injury incurred in the line of duty, are eligible for SLA.

d. Soldiers deployed on operational assignments to qualifying areas for at least 120 continuous days are eligible for SLA.

e. Soldiers meeting all of these conditions may also qualify for SLA—

(1) Deployed for a lengthy period, normally 60 or more days.

(2) Prevented from using leave through end of the FY due to deployment.

(3) Deployed to meet a contingency operation of the United States.

(4) Deployed to enforce national policy or an international agreement based on a national emergency or in the need to defend national security.

3–3. Rules to request special leave accrual

a. SLA criteria are based on law as established in 10 USC 701.

b. SLA authorizes Soldiers to carry forward a maximum of 120 leave days at the end of an FY (60 days of normal leave plus up to 60 days of SLA-protected leave). From FY08 through FY15, however, Soldiers could carry forward up to 120 leave days (75 days ordinary leave plus 45 SLA-protected days).

c. The Defense Finance and Accounting Service (DFAS) tracks SLA based on eligibility for HFP/IDP, deployment in other SLA-eligible areas, and leave usage.

d. Commanders have disapproval authority for requests to reinstate leave that do not meet criteria for SLA per subparagraph 3–4*d*.

e. Requests not requiring an exception to policy are forwarded by the BN S1 through the supporting Defense Military Pay Office (DMPO) to DFAS.

f. Requests requiring an exception to policy are forwarded by the brigade S1, with a general officer recommendation for approval and supporting documentation, to the Chief of Military Entitlements and Compensation, HQDA DCS–G1 (DAPE-PRC) (see fig 3–2).

g. General Officers requesting an exception to policy for SLA for themselves must staff the request through the Director of the Army Staff.

3–4. Processing special leave accrual

a. Operational deployment to non-hostile fire pay/imminent danger pay areas.

(1) Units must submit rosters of Soldiers pending or already on operational deployment to SLA-eligible non-HFP/IDP areas through the supporting DMPO to DFAS (see fig 3–1 for example of request and spreadsheet).

(2) To maintain SLA eligibility, deployed Soldiers must remain in the deployment area for at least 120 consecutive days. SLA-protected leave begins to accrue when accrued leave balances exceed 60 days.

(3) Units must ensure deployment-related start and stop actions for each Soldier were submitted to DFAS.

(4) The BN S1 must verify that all chargeable leave granted during the FY was submitted and processed.

b. Deployment to hostile fire pay/imminent danger pay areas.

(1) The DFAS begins tracking Soldiers upon their arrival in HFP/IDP areas, as evidenced by documentation of HFP/IDP on Soldier LESs.

(2) Soldiers become eligible for SLA when they serve 120 consecutive days boots on the ground in HFP/IDP areas.

(3) SLA-protected leave begins to accrue when accrued leave balances exceed 60 days.

(4) SLA days appear on the LES on 1 OCT (if deployed, and the accrued leave balance exceeds 60 days). Ten or more days after redeployment, SLA days appear on the end-of-month LES (if the accrued leave balance exceeds 60 days). If SLA is not documented, the BN S1 should send an inquiry through the supporting DMPO to DFAS.

c. Hospitalized Soldiers.

(1) Soldiers hospitalized (on in-hospital status) for 120 consecutive days for injuries incurred in the line of duty are eligible for SLA protection, if the hospitalization would cause the Soldier to lose accrued annual leave at the end of the FY.

(2) SLA approval authority for Soldiers hospitalized for 120 or more days, per subparagraph c(1), is limited to the hospital commander. No further delegation is authorized.

(3) Hospital commanders do not have authority to approve SLA for hospitalizations of less than 120 consecutive days.

d. Situations resulting in loss of leave that do not meet criteria for special leave accrual.

(1) Commanders will disapprove requests that clearly do not meet criteria for SLA.

(2) Examples of conditions that clearly do not meet SLA criteria—

(a) Soldier did not use leave or could not use enough leave because of—

1. Medical appointments, short in-hospital stays, and/or medical treatment.
2. Assignment to a warrior transition unit.
3. Assignment, detail, or TDY to special duties, projects, study groups, or similar duty.
4. Increased workload and/or responsibilities, including selection for command.
5. Participation in sporting activities.
6. Participation in training exercises.

7. Operational requirements (unless due to preparation and subsequent deployment).

8. Attendance at military or personally funded schools, courses, or fellowships.

(b) Lost leave was earned after return from deployment.

(c) Soldier withdrew leave requests (unless necessitated by national crisis or national emergency).

(d) Soldier did not submit leave requests (unless necessitated by national crisis or national emergency).

(e) Soldier's request for leave was not approved.

(f) Soldier's request for leave was approved, but later cancelled (unless necessitated by national crisis or national emergency).

(3) Note that DoD identification numbers may be used in lieu of social security numbers on forms.

(4) Requests for exception to policy must include a letter of recommendation for approval signed by a general officer, and submitted to: Chief of Compensation and Entitlements, Office of the Deputy Chief of Staff, G–1 (DAPE–PRC), 300 Army Pentagon, Washington, DC 20310–0300 (see fig 3–2).

3–5. One-time leave sell back

a. Enlisted Soldiers who would lose accumulated leave in excess of 120 days accrued, as authorized under paragraph 3–2, may elect to be paid for any leave in excess of 120 days so accumulated. Payment is limited to a maximum of 30 days of such leave.

b. Enlisted Soldiers may elect to be paid for such leave only once during their military careers.

c. Officers and warrant officers are not eligible for leave sell back.

d. One-time leave sell back counts toward the 60-day maximum which may be sold during a Servicemember's military career.

1. THRU *(Include ZIP Code)*	2. TO *(Include ZIP Code)*	3. FROM *(Include ZIP Code)*
BN or BDE S-1 (to be completed by S-1)	DFAS-Indianapolis ATTN: DFAS-IN/JFL 8899 E.56th Street Indianapolis, IN 46249-0865	Requesting Unit

SECTION I - PERSONAL IDENTIFICATION

4. NAME *(Last, First, MI)*	5. GRADE OR RANK/PMOS/AOC	6. SOCIAL SECURITY NUMBER
Bulk Request (see Encl 1)	N/A	N/A

SECTION II - DUTY STATUS CHANGE *(AR 600-8-6)*

7. The above Soldier's duty status is changed from N/A to N/A effective N/A hours, N/A N/A

SECTION III - REQUEST FOR PERSONNEL ACTION

8. I request the following action: *(Check as appropriate)*

☐	Service School *(Enl only)*	☐	Special Forces Training/Assignment	☐	Identification Card
☐	ROTC or Reserve Component Duty	☐	On-the-Job Training *(Enl only)*	☐	Identification Tags
☐	Volunteering For Oversea Service	☐	Retesting in Army Personnel Tests	☐	Separate Rations
☐	Ranger Training	☐	Reassignment Married Army Couples	☐	Leave - Excess/Advance/Outside CONUS
☐	Reassignment Extreme Family Problems	☐	Reclassification	☐	Change of Name/SSN/DOB
☐	Exchange Reassignment *(Enl only)*	☐	Officer Candidate School	☒	Other *(Specify)* Special Leave Accrual (SLA)
☐	Airborne Training	☐	Asgmt of Pers with Exceptional Family Members		

9. SIGNATURE OF SOLDIER *(When required)*	10. DATE *(YYYYMMDD)*
N/A	N/A

SECTION IV - REMARKS *(Applies to Sections II, III, and V) (Continue on separate sheet)*

1. Request SLA for Soldiers listed within enclosure 1 that deployed to [location] for [unclassified name of operation] from [date] to [date]

2. Per Secretary of the Army memo, Subject: Designation of Duty in Support of Operational Deployment and In-Patient Hospitalized Soldiers as Qualifying Duty for Special Leave Accrual, dated 26 January 2015, enclosure 2 is applicable Army Component Commander's designation of a leave restricted area and/or operation.

3. With my signature, I certify that Soldiers within enclosure 1 were deployed for a continuous period of at least 120 days in the leave restricted area and /or operation mentioned above.

SAMPLE

Figure 3–1. Special leave accrual for group of Soldiers (bulk request)

Special Leave Accrual (SLA) Bulk Request

Name			DOD ID	Rank	Date		Unclassified Mission Operation or Hospital	Geographic Location
Last	First	M.I.			Arrival	Departure		
[Aaaaaaa]	[Aaaaa]	[A]	[DOD ID Number]	[E/O]	[dd/mm/year]	[dd/mm/year]	[Insert Op/Hospital name]	[Insert Location]
[Bbbbbbb]	[Bbbbb]	[B]	[DOD ID Number]	[E/O]	[dd/mm/year]	[dd/mm/year]	[Insert Op/Hospital name]	[Insert Location]
[Ccccccc]	[Ccccc]	[C]	[DOD ID Number]	[E/O]	[dd/mm/year]	[dd/mm/year]	[Insert Op/Hospital name]	[Insert Location]
[Ddddddd]	[Ddddd]	[D]	[DOD ID Number]	[E/O]	[dd/mm/year]	[dd/mm/year]	[Insert Op/Hospital name]	[Insert Location]

Note: Do not include Soldiers who are receiving Hostile Fire Pay or Imminent Danger Pay; they are already tracked for SLA by DFAS.

SAMPLE

Figure 3–1. Special leave accrual for group of Soldiers (bulk request)—Continued

DEPARTMENT OF THE ARMY
ORGANIZATION
STREET ADDRESS
CITY STATE ZIP

OFFICE SYMBOL [Date]

MEMORANDUM FOR Chief, Compensation and Entitlements Division, Office of the Deputy Chief of Staff, G-1 (DAPE-PRC), 300 Army Pentagon, Washington, DC 20310-0300

SUBJECT: Request for Special Leave Accrual (Rank Last, First MI.)

1. Recommend approval of an exception to policy to grant SLA for [Rank Last]

2. This request is based on deployment to [location] for [unclassified name of operation]. The Soldier [was/was not] eligible for [hostile fire pay/imminent danger pay or hazardous pay] for _XX_ continuous days from [date] to [date].

3. As shown on the attached LES (from month redeployed), this Soldier had _XX_ days of accrued leave and _XX_ days of use/lose the month s/he departed from the deployment area.

4. The attached [month] LES indicates the Soldier had _XX_ days of accrued leave and _XX_ days of use/lose, and that he used _XX_ days of leave during the year.

5. The attached [month] LES shows _XX_ days of accrued leave, and _XX_ days lost.

6. Other than the deployment, the Soldier was unable to take leave from [date] to [date] because: [list reasons and dates].

7. This command [has/does not have] proactive leave policies encouraging Soldiers to take an average of 30 days of leave per year, including at least one leave of 10-14 days or longer.

8. The point of contact for this request is [insert name/rank/phone/e-mail address].

[GO-level Signature Block]

Enclosures:

Notes: 1. Disapprove, at the local level, requests clearly not meeting criteria for SLA.
2. Modify this memo to meet the individual Soldier's circumstances.
3. E-mail address: usarmy.pentagon.hqda-dcs-g-1.mbx.dape-prctravel@mail.mil.

Figure 3–2. Request for special leave accrual as an exception to policy

Chapter 4
Chargeable Leave

4–1. Chargeable leave

a. Chargeable leave is also known as annual leave, accrued leave, and ordinary leave.

b. Soldiers are authorized to take an average of 30 days of chargeable leave a year; however, commanders may grant more or less, as operationally feasible.

c. Frequent periods of leave will be authorized when possible, including at least one leave period per year of approximately 14 consecutive days or longer.

d. Soldiers who refuse to take leave throughout the year will be counseled regarding their obligation to execute military programs and policies. They will also be cautioned that such refusal may result in losing earned leave.

e. The unit commander or approved designee is the approval authority for ordinary leave requests.

f. Commanders, approved designees, and all levels of supervisors will manage chargeable leave to meet Congressional intent for its use and accountability, as well as legal and DoD requirements.

g. Soldiers will be briefed on leave extension before departing on leave.

h. Two periods of chargeable leave will not be approved without a duty day in between, except under emergency or unusual circumstances as determined by the leave approval authority.

(1) The emergency or unusual circumstance must become known after the Soldier terminates leave.

(2) For example, the Soldier terminates leave on Friday and on Sunday the Soldier becomes aware of a problem requiring another period of leave.

i. See chapter 7 for leave in conjunction with pass.

4–2. Categories of chargeable leave

a. Annual leave (see para 4–3).

b. Advance leave (see para 4–4).

c. Emergency leave (see para 4–5).

d. Reenlistment leave (see para 4–6).

e. Leave in conjunction with PCS (see para 4–7).

f. Leave travel in connection with consecutive overseas tours (COTs) leave (see para 4–8).

g. Terminal or transition leave (see para 4–9).

h. Environmental morale leave (EML) and funded environmental morale leave (FEML) (see para 4–10).

i. Rest and Recuperation (R&R) Leave Program (see para 4–11).

j. Non-Chargeable Rest and Recuperation (NCR&R) Leave Program (see para 4–12).

k. Court determination and/or child support leave (see para 4–13).

l. Continuation or recall of retirees (see para 4–14).

m. Saved leave balance (SLB) (see para 4–15).

4–3. Annual leave

Annual leave is leave granted in execution of a commander's leave program, chargeable to the Soldier's leave account. This is also referred to as "ordinary leave." All Soldiers will be provided the opportunity to take annual leave. Commanders authorized to grant leave may establish and regulate schedules that provide for maximum use of earned leave consistent with operational requirements, training workloads, and the desires of the Soldier.

Table 4–1
Steps to request and grant chargeable leave

Step	Work Center	Required action
1	Soldier	Use a DA Form 31 to request chargeable leave. Review instructions on back of DA Form 31; request clarification if needed. Complete blocks 2 through 8, mark "chargeable" and category in block 7. Complete blocks 9a, 9b, 10a, and 10b, and sign block 11. Attach a copy of most recent LES, after blocking out personally identifiable information. Forward DA Form 31 and LES to supervisor.
2	Supervisor	Verify portions of DA Form 31 completed by Soldier. Recommend approval or disapproval, provide reason if recommending disapproval, and sign form. Forward to personnel office (for example, BN S1).

Table 4–1
Steps to request and grant chargeable leave—Continued

3	Personnel office	Verify blocks 2 through 12 are properly completed. Enter leave control number in block 1. Enter information from DA Form 31 onto DA Form 4179. Forward the request to the commander or designated approving authority.
4	Approver	Approve or disapprove the request, and sign block 13. If disapproved, state reason in block 17. Return DA Form 31 and LES to Personnel office.
5	Personnel office	1) Shred LES. 2) If request is disapproved— a) Check to ensure reason was entered in block 17. b) Mark diagonal line through DA Form 31 and mark "VOID." c) Personnel officer or noncommissioned officer in charge will sign name, grade, and date. d) Return DA Form 31 to Soldier; advise Soldier to keep it for one year. e) Line through entry on DA Form 4179 and annotate as "VOID." f) Keep copy of the void DA Form 31 in accordance with AR 25–400–2. 3) If request is approved— a) Return one copy of approved DA Form 31 through supervisor to Soldier. b) Retain Soldier copy, original, and organization copy of DA Form 31 in suspense file until day before leave begins. c) On retained copies of DA Form 31, enter departure date, time, and authority in block 14. d) Provide a copy to Soldier before departure on leave. e) Re-suspense original and organization copy until last day before the scheduled return.
6	Soldier	Signs out and in from leave per unit policy, while in the local area.
7	Personnel office	When Soldier returns from leave— a) Enter return date, time, and authority in block 16 of DA Form 31. b) Provide copy to Soldier. c) Update DA Form 4179. d) Send a copy of the DA Form 31 to the DMPO no later than three working days after completion of leave. e) Maintain DA Form 31 and DA Form 4179 per AR 25–400–2.

Table 4–2
Leave control number components

a. 2-digit input source code (ISC); for example, "BB;" For unit with ISC of BB
b. 1-digit FY (FY of date when leave is entered on DA Form 4179); for example, "8;" For FY18, (FY18 begins 1 OCT 17 and ends 30 SEP 18)
c. 4-digit control number; for example, "0015;" For the 15th control number logged in FY18
Example for 15th leave of FY18, if logged after 30 SEP 17: BB–8–0015;

4–4. Advance leave

a. Advance leave is chargeable leave, and it may be granted only after all accrued leave is exhausted.

b. No more advance leave may be granted than the amount of leave the Soldier will accrue during his/her remaining period of active duty.

c. To avoid excessive negative leave balances, advance leave is limited to the minimum amount of leave needed.

d. The unit commander or by-name designee is the approval authority for advance leave requests of up to 30 days.

e. Advance leave is with pay and allowances, including leave accrual.

f. Advance leave may be granted for—

(1) Soldiers with documented emergencies.

(2) Soldiers with urgent personal or morale problems.

(3) An accession or PCS move (to allow for up to 30 days of chargeable absence enroute).

(4) Soldiers retiring or ending term of service (ETS), if all transition processing is complete before start of terminal leave.

g. Advance leave changes to excess leave on date of separation, reenlistment, or entry into an extension of enlistment. Excess leave is without pay and allowances, and leave does not accrue in excess leave status. If Soldiers are paid while on excess leave, all money will later be recouped by DFAS. Excess leave can be very expensive to the Soldier, and should be avoided.

h. Advance leave may not be combined with excess leave for Soldiers—

(1) In professional degree programs.

(2) In officer procurement programs.

(3) Being processed for punitive, administrative, or disability discharge.

i. Advance leave is requested in accordance with paragraph 4–3 but using dropdowns for advance leave.

j. If more than 30 days of advance leave is requested, meets criteria of paragraph 4–4*f* level commander recommends approval, forward request and supporting documentation through next higher headquarters to Commander, U.S. Army Human Resources Command (AHRC–PDP –P), Dept. 480, 1600 Spearhead Division Avenue, Fort Knox, KY 40122–5408 or at email: usarmy.knox.hrc.mbx.tagd-leave-and-pass-policy@mail.mil.

Table 4–3
Steps to request and grant advance leave

Step	Work center	Required action
1	All	Complete DA Form per table 4–3.
2	Soldier	Provide reason for request and justification for approval. Include (and initial) this statement in block 17: "I understand that advance leave changes to excess leave on date of separation, reenlistment, or upon extension of enlistment. I also understand that excess leave is without pay and allowances, so I will not be entitled to physical disability retired pay if I become disabled while in an excess leave status. _____"
3	Commander	May approve or disapprove requests for up to 30 days. Counsels the Soldier. O–5/O–6 level commander may disapprove requests for advance leave beyond 30 days, or recommend approval.
4	Personnel	If commander recommends approval for more than 30 days, Forward request to U.S. Army Human Resources Command (AHRC–PDP –P), Dept. 480, 1600 Spearhead Division Avenue, Fort Knox, KY 40122–5408 at email: usarmy.knox.hrc.mbx.tagd-leave-and-pass-policy@mail.mil. Attach commander's recommendation and explain any unclear circumstances.
5	Personnel	If request is approved, follow leave processing procedures in paragraph 4–3 but use dropdowns for advance leave.

4–5. Emergency leave

a. Emergency leave is a chargeable leave status.

b. The unit commander or approved designee is the approval authority for up to 30 days of emergency leave and an additional 30 days of advance leave and/or excess leave for a total absence of 60 days.

c. If unit commander or approved designee recommends approval of a request for more than 60 days of emergency leave, it must be sent through next higher headquarters to Commander, U.S. Army Human Resources Command (AHRC–PDP –P), Dept. 480, 1600 Spearhead Division Avenue, Fort Knox, KY 40122–5408 or at email: usarmy.knox.hrc.mbx.tagd-leave-and-pass-policy@mail.mil.

d. Accrued leave will be charged first. If accrued leave will be exhausted, it may be combined with advance leave and then excess leave.

e. Travel clearance requirements must be met before emergency leave is granted to Soldiers traveling outside of the United States and its territories (see para 2–11).

f. Verification of emergency.

(1) Soldiers may request emergency leave with or without American Red Cross verification.

(2) The unit commander or an approved designee may request verification through the American Red Cross or from the military activity nearest to the location of the emergency.

(3) Commanders should not disapprove emergency leave based solely on lack of American Red Cross verification.

(4) Take caution to ensure that delays to obtain verification do not result in a Soldier arriving too late to accomplish the intended purpose for the emergency leave.

g. Emergency leave is appropriate when—

(1) A member of the household or immediate Family has died.

(2) The Soldier's presence would contribute to the welfare of a dying member of the household or immediate Family.

(3) Serious accident, major surgery, or illness of a member of the household or immediate Family imposes a demand on the Soldier that must be met immediately and cannot be accomplished from the duty station or by any other means.

(4) The Soldier's failure to return home places a severe or unusual hardship on the Soldier, his or her household, or immediate Family.

h. Swift action must be taken due to time sensitivity of most emergency leave requests.

i. Emergency leave is not authorized in situations such as these, where ordinary leave is usually more appropriate—

(1) Pregnancy of spouse and childbirth, unless a severe life threatening situation is documented.

(2) Serious marital problems, threatened divorce, or other personal problems, unless a severe life threatening situation is documented.

(3) Court hearings to resolve financial problems. (Expense related to emergency leave may aggravate problem.)

(4) To harvest crops or manage business firms or activities.

(5) Psychoneurosis based on Family separation. (However, emergency leave may be appropriate if the attending physician documents a severe psychotic episode and the member's presence might prevent institutionalization.)

(6) To settle the estate of a deceased relative.

(7) Situations involving a grandparent (not in loco parentis) aunt, uncle, cousin, niece, or nephew (when not the only living blood relative) or for a friend, fiancée, or fiancé.

j. A Soldier's immediate Family includes these Family members of either the Soldier or the Soldier's spouse—

(1) Parents, including stepparents.

(2) Spouse.

(3) Children, including stepchildren.

(4) Sisters, including stepsisters.

(5) Brothers, including stepbrothers.

(6) Only living blood relative.

(7) A person in loco parentis.

k. In loco parentis.

(1) If the emergency is for a person in loco parentis, the Soldier must sign a statement verifying in loco parentis.

(2) A person in loco parentis is one who stood in place of a parent to the Soldier or the Soldier's spouse for 24 hours a day, for at least a five-year period before the Soldier or the Soldier's spouse became 21 years of age.

(3) The person must have provided a home, food, clothing, medical care, and other necessities as well as furnished moral and disciplinary guidance and affection.

(4) A grandparent or other person is usually not considered in loco parentis if a parent lived at the same residence.

(5) A baby-sitter or person providing day care services is not considered in loco parentis.

l. A Soldier's Family members, friends, or relatives may seek emergency leave for a Soldier through the American Red Cross.

(1) The local chapter verifies circumstances and refers reports to the appropriate Army command for evaluation and decision.

(2) Where applicable, the American Red Cross may send requests directly to the chiefs of missions, military assistance advisory groups, or attaché offices.

(3) The Soldier may choose not to request leave, even if verification has been received.

m. If emergency leave is requested (per para 4–3, but use dropdown for emergency leave), the Soldier must be given instructions to request an emergency leave extension.

n. The words "BLUE BARK" must be included on all communications, including the DA Form 31, if travel relates to the death of a dependent.

o. Unit will complete Parts II, III & IV of DA Form 31 only if emergency leave transportation and travel is authorized to or from OCONUS locations, and must include information on command-sponsored Family members traveling with the Soldier.

p. Emergency leave travel at Government expense is authorized in accordance with the Joint Travel Regulations (JTR).

(1) Travel for Soldier and/or dependents will be authorized as prescribed in DoDI 4515.13 and the JTR.

(2) Authorized transportation expenses are charged to the appropriated funds supporting TDY travel of the Soldier's assigned unit. However, emergency leave will not be denied solely because of lack of funds for authorized funded emergency leave travel.

(3) Emergency leave will not be granted for the purpose of either increasing the Soldier's travel priority or to offset personal travel costs.

(4) Soldiers not authorized emergency leave travel by the JTR may be authorized travel on Government-owned or Government-controlled aircraft per DoDI 4515.13.

(5) Soldiers are not charged leave for time spent in emergency leave travel.

(a) Chargeable leave begins the day after the Soldier arrives at the aerial port of debarkation (APOD).

(b) Chargeable leave ends the day before the day Soldier returns to the aerial port of embarkation (APOE).

(6) Emergency leave travel may include—

(a) Travel between overseas areas and return.

(b) Travel from overseas to CONUS APOD.

(c) Travel from CONUS APOE to overseas areas.

q. Military mission, military assistance advisory group, and attaché personnel may be provided travel by Department of State or state-shared support. When not provided, travel is charged to Military Assistance Executive Appropriations under the Military Assistance Program budget project for administrative and logistical support for authorized Military Assistance Program positions.

r. If an emergency develops when the Soldier is already at an emergency leave site, there is no travel entitlement.

s. When a Soldier is TDY and takes emergency leave, the Soldier's permanently assigned unit provides the funds.

t. Questions concerning travel entitlements will be addressed to the installation transportation officer.

u. Travel references—

(1) Commercial air travel: JTR.

(2) Military Air: DoDI 4515.13, and the Defense Transportation Regulation (DTR).

v. If emergency leave was erroneously authorized due to false information—

(1) The commander considers administrative and/or disciplinary action.

(2) Travel time converts to ordinary leave.

(3) The unit notifies the BN S1 that a corrected DA Form 31 is needed, and the original emergency leave order must be revoked.

(4) Attach a copy of the revoked DA Form 31 to the new DA Form 31 and forward to the DMPO.

(5) If travel was at Government expense, advise Soldier of—

(a) Possible indebtedness to the Government for erroneous payment for travel.

(b) Possible pay collection per DoD 7000.14–R.

(c) Conversion of travel time to ordinary leave.

4–6. Reenlistment leave

a. Reenlistment leave is a chargeable absence.

b. The unit commander or designee is the approval authority.

c. Soldiers who reenlist, and have sufficient leave accrued, may be authorized up to 90 consecutive days of leave, within constraints of operational requirements.

d. Reenlistment leave is the first leave taken after reenlistment. However, it may be deferred due to operational necessity, desire of the Soldier, or emergency leave.

4–7. Leave in conjunction with permanent change of station

a. A DA Form 31 must be used with PCS reassignments, even if the Soldier will depart from the losing unit on the same day he or she reports to the gaining unit.

b. The DA Form 31 will cover from date of departure from losing unit to reporting date in orders, even if early report is authorized. The TO date on the DA Form 31 must be the same day as the reporting date in the PCS orders. Permission to report early does not change the reporting date.

c. Soldiers will usually be authorized not less than 30 days of leave in conjunction with PCS movement, if excess leave is not involved.

d. Soldiers should not be asked to take less than 30 days of leave between duty stations except for military operational requirements (DoDI 1327.06). Exceptions—

(1) Soldiers may voluntarily request and be granted less than 30 days of leave between duty stations.

(2) Soldiers completing recruit training are authorized up to 10 days of leave for CONUS assignments or 14 days leave for OCONUS assignments, unless precluded by military operational requirements.

(3) Newly commissioned officers completing officer candidate training will normally be authorized 30 days of leave (advance leave if needed) between graduation and reporting to their first duty station as an officer, unless precluded by military operational requirements.

(4) New warrant officers completing warrant officer candidate training will normally be authorized 30 days of leave (advance leave if needed) between graduation and reporting to their first duty station as an officer, unless precluded by military operational requirements.

(5) For reassignments without change of station, the reporting date will be the scheduled date of departure plus the number of leave days authorized and TDY. If no leave or TDY is involved, the reporting date will be the day after the scheduled date of departure.

e. If PCS orders state early report is not authorized, Soldiers must report to the new PDS on the order date to gaining command (ORDTGC).

f. If PCS orders do not address early report, Soldiers can report to the new PDS up to 30 days before the ORDTGC.

g. If PCS orders state early report is authorized, Soldiers can report to the new PDS up to 60 days before the ORDTGC. However, the TO date on the DA Form 31 must be the same day as the ORDTGC.

h. Examples of leave situations when early report is authorized—

(1) If a Soldier with 80 days of accrued leave and a reporting date of 1 December is authorized early report, the DA Form 31 (if the Soldier requests 60 days) should be from 2 October to 1 December. If the losing commander grants all 60 days, the Soldier may travel directly to the new PDS to report 60 days early, or use PCS leave enroute and report less than 60 days early. If an eligible Soldier is granted 10 days for house hunting, the DA Form 31 would be for 60 days of PCS leave plus 10 days for house hunting. For the 70 days enroute, this Soldier would depart the losing organization on 23 September.

(2) If a Soldier with 40 days of accrued leave and a reporting date of 1 December is authorized early report, the DA Form 31 (if the Soldier requests and is granted all 40 days), should be from 23 October to 1 December. If the Soldier is also eligible for and granted 10 days for house hunting, the DA Form 31 would be from 14 October to 1 December, for a total of 50 days. The earliest date this Soldier can depart the losing organization is 14 October.

(3) If a Soldier with 15 days of accrued leave and a reporting date of 1 December is authorized early report, the DA Form 31 (if the Soldier requests and is granted the 30 chargeable days authorized), should be for 15 days of accrued leave plus 15 days of advanced leave, covering from 2 November to 1 December. If the Soldier is eligible for and granted 10 days for house hunting, the DA Form 31 would be from 23 October to 1 December. The earliest date this Soldier can depart the losing organization is 23 October.

(4) Soldiers with extended (greater than 30 days) TDY enroute—

(a) If a Soldier with 40 days of accrued leave, a 31-day TDY enroute, and a reporting date of 1 December is authorized early report, the DA Forms 31 (if the Soldier requests and is granted all 40 days), must be dated so that the Soldier arrives at the TDY location on the TDY reporting date, and at the new PDS on the ORDTGC. If the TDY is from 15 October to 15 November, for example, the first DA Form 31 could be from 23 September to 15 October (23 days), and the second DA Form 31 could be from 16 November to 1 December (16 days). Defense Travel System (DTS) for the TDY portion is entered at the losing command.

(b) If a Soldier wishes to report to the new PDS before attending TDY, the Soldier must submit a request for early arrival to change the report date (see AR 600–8–11). If the change is approved, the DA Form 31 in this case would cover departure from the losing command to the new ORDTGC. DTS for the TDY portion is then entered at the gaining command.

i. The "FROM" date in block 10 of the DA Form 31, if only one DA Form 31 is used, is the date of departure from the losing organization, and the "TO" date is the ORDTGC. If more than one DA Form 31 is used due to extended TDY enroute, the first DA Form 31 will cover from date of departure from the losing organization to report date at TDY location, and the last DA Form 31 will cover from date of graduation/departure from TDY location to ORDTGC.

j. Change to reporting date must be requested per AR 600–8–11 and may require foreign service tour extension or curtailment for OCONUS locations.

k. Non-chargeable absences enroute, including TDY, will be noted in block 17 of the DA Form 31 (see also leave in conjunction with temporary duty).

l. The DMPO calculates chargeable and non-chargeable days when in-processing at the gaining PDS.

4–8. Leave together with consecutive overseas tours

a. COT leave is chargeable leave granted with funded transoceanic travel per 37 USC 481.

b. Soldiers stationed OCONUS receiving orders to an in-place consecutive overseas tour (IPCOT), or on PCS reassignment to another overseas duty station, may be authorized Government-funded travel and transportation allowances in connection with authorized leave from their last duty station (in accordance with DoDI 1327.06 and the JTR).

c. Soldiers authorized travel allowances in conjunction with a COT or IPCOT may request to defer travel between the two tours of duty to use the allowances during the second tour of duty. Unless Soldiers are unable to use the COT travel allowances due to lengthy deployment, the travel allowances will expire unless completed before the end of the

new tour. Soldiers unable to use COT travel allowances due to lengthy deployment may defer travel up to one year after completion of the deployment that precluded travel.

d. The new tour must be an authorized tour as prescribed in the JTR.

e. COT leave is normally used between the two tours of duty.

f. The old tour must be totally completed before COT leave commences.

g. Travel entitlements for Soldiers and their Family members are specified in the JTR.

h. Travel is performed in a duty status (not chargeable as leave).

i. Either losing or gaining commanders may defer COT leave due to military necessity, and Soldiers may request deferment of COT leave for personal reasons. However, deferment is void and COT leave entitlements are depleted if any chargeable leave is used between the two tours of duty.

j. If COT leave travel is deferred, the Soldier must travel directly from the old PDS to the new PDS. No leave or other absence may be authorized enroute except for 4 days to drop off and/or pick up dependents if they are residing at an approved designated location (see Proceed Time, para 5–14).

k. If the PCS requires either the Soldier or Family members to traverse through CONUS, COT leave must be used between the two tours of duty. The only exception is if no chargeable leave is used enroute , and COT leave deferment is justified in writing as a military necessity by the losing or gaining commander.

l. COT leave may not be combined with other leave, pass, or administrative absence except for administrative absence for house hunting and for TDY enroute.

m. If COT leave is deferred due to military necessity, the orders will state, "COT leave is authorized but deferred due to military necessity by [gaining or losing] commander." Even if the orders state that COT leave is deferred, the entitlement is lost if any chargeable leave is used enroute.

n. The first leave used after reporting to the Soldier's new PDS is not required to be deferred COT leave.

o. Steps to request COT leave—

(1) Use DA Form 31 in accordance with paragraph 4–3; however, click on COT leave dropdown.

(2) If leave is disapproved due to military necessity, the Soldier must retain a copy of the disapproved DA Form 31 to substantiate a future request for deferred COT leave.

(3) The Soldier attaches PCS orders and a copy of the disapproved DA Form 31 to substantiate deferred COT leave.

4–9. Terminal leave

a. Terminal leave, also known as transition leave, is ordinary (chargeable) leave.

b. Terminal leave begins after Soldiers complete all operational requirements, out-processing requirements, and transition processing in preparation for separation from active duty.

c. Soldiers must complete processing at an authorized and directed transition activity before beginning terminal leave. Retirees requesting a location of personal choice transition point will complete processing at a designated U.S. Army Transition Center before starting terminal leave.

d. The terminal leave period ends on the same calendar day as the date of discharge from active duty, which may be the Soldier's ETS date, retirement date, or separation date from active duty.

e. To prevent loss of leave and to minimize accrued leave payments, requests for terminal leave should normally be granted.

f. Soldiers must have their retirement, separation, or release orders in their possession and have completed all administrative processing before signing out and departing on terminal leave.

g. The unit commander or designee is the approval authority for terminal leave requests.

h. The number of leave days authorized for terminal leave cannot exceed the total leave days the Soldier will have accrued on day of separation from active duty.

i. The "not later than" date, set by the U.S. Army Disability Agency, may be exceeded to allow the Soldier to use accrued leave as terminal leave only if the Soldier has cooperated to meet transition requirements, and has not willfully failed to comply with instructions in accordance with time lines of AR 635–8 and AR 635–40. These requests will be processed in accordance with AR 635–8 and AR 635–40.

j. Soldiers should discuss the three options for cashing in accrued leave at transition with DMPO early in the transition process:

(1) Cash in up to 60 days of leave (maximum that can be cashed in during a military career, except as noted in para 2–4), and use the rest (if any) as terminal leave.

(2) Cash in some leave days and use the rest as terminal leave.

(3) Cash in no leave days, and use it all as terminal leave.

k. Requesting terminal leave—

(1) Prepare requests on DA Form 31 in accordance with paragraph 4–3; however, click on terminal leave dropdown.

(2) Unit and DMPO will advise Soldiers that leave settlements are deposited to bank accounts after the date of discharge from active duty, not on the day of final out processing.

(3) Commander or designated leave authority will counsel Soldier to notify a reliable person of their itinerary, and ask that person to notify the transition center in case of hospitalization, injury, or death while on terminal leave.

(4) Soldiers will direct travel-related questions to the supporting travel/transportation office.

l. Leave terminates at 2400 on day of transition (concurrent with transition). It may also end—

(1) Upon reporting to the designated U.S. Army Transition Point.

(2) Upon return to previous unit of assignment.

(3) Upon hospitalization.

(4) Upon death.

m. Leave may not terminate before the reporting date to the transition point, as specified on the Soldier's orders.

4–10. Environmental morale leave and funded environmental morale leave

a. Servicemembers assigned to overseas duty locations with extraordinarily difficult living conditions or adverse environmental conditions that would offset the full benefits of annual leave programs may obtain EML or FEML based on—

(1) Geographic isolation, substandard housing, inadequate commercial transportation, and lack of cultural and recreational facilities.

(2) Notably unhealthy conditions, such as high incidence of disease and epidemics, lack of public sanitation, and inadequate health control measures.

(3) Excessive physical hardship (for example, deleterious effects of climate and altitude and dangerous conditions affecting life, physical well-being, or mental health).

b. EML Program.

(1) The purpose of the EML Program is to make use of DoD-owned or controlled military airlift to further annual leave objectives.

(2) Combatant commanders will designate authorized EML duty locations and destinations; normally necessary at overseas locations with adverse environmental conditions where the with-dependents tour length is 24 months or less.

(3) Permanently assigned Servicemembers, regardless of their accompanied status and/or their dependents may be provided space available air transportation from EML duty locations to take accrued leave at an EML destination site.

(4) Dependents must be command-sponsored to participate.

(5) Participants may take no more than two EML trips per year.

(6) The Army will establish time frames when eligible Soldiers may take EML. Except for Soldiers assigned to dependent-restricted areas, EML trips may not be taken within the first six months or within the last six months of eligible tours of duty (for example, EML is used during only months seven through 18, of a 24-month tour).

(7) Combatant commanders or their designated representative may waive the six-month rule on a case-by-case basis, based on mission requirements and unique personnel considerations for Servicemembers on a dependent-restricted tour.

(8) Waiver requests for Soldiers not on a dependent-restricted tour must be forwarded through the ASCC, through DCS, G–1, to the Undersecretary Secretary of Defense, P&R (MPP), Defense-Pentagon, Washington, DC 20301–4000.

(9) Waiver requests must include—

(a) Soldier's name, grade, and DoD identification number.

(b) Soldier's station.

(c) Date eligible for return from overseas (DEROS).

(d) Number of dependents who will be traveling on EML with the Soldier.

(e) Dates of desired EML.

(f) Mission requirements and unique personnel considerations preventing use of leave during the normal timeframe.

c. The DA Form 31 is used to request EML leave in accordance with paragraph 4–3 but click on EML dropdown.

(1) At locations where commercial air transportation is available, the entire authorized absence, including time spent in a travel status, is charged to the leave account.

(2) At locations where commercial air transportation is not available and members must travel by military air, time spent in travel will not be charged against the leave account.

d. FEML Program.

(1) FEML provides Government-funded transportation from the FEML duty location to the designated FEML destination.

(2) The Undersecretary Secretary of Defense, P&R (MPP), Defense-Pentagon, Washington, DC 20301–4000 will designate and recertify authorized FEML duty locations.

(3) FEML duty locations are limited to locations that are truly isolated, austere, or unhealthful, and designated FEML destinations.

(4) Locations must be recertified every two years based on appropriate unified commander's recommendation.

(5) Initial designations and re-certifications are based on the appropriate unified commander's recommendation. Such recommendations must be fully justified and incorporate an FEML data sheet completed by the commander recommending the designation, as well as comments from other DoD Components (see DoDI 1327.06).

(6) The authority to ensure uniformity and consistency within the FEML program is 37 USC 481.

(7) Soldiers on 24or 36-month consecutive tours, including extensions (see AR 614–30) are authorized either one round trip (for a 24-month tour) or two round trips (for a 36-month tour).

(8) Except for "dependent-restricted" tours (see AR 614–30), FEML is normally not authorized in the first or last six months of a Soldier's tour of duty. However, major commanders or a designated representative at their command level may waive the six-month rule on a case-by-case basis.

(9) Waivers to the six-month rule are based on mission requirements and unique personnel considerations. Requests to waive the six-month rule must include—

(a) Soldier's station.

(b) DEROS.

(c) Number of dependents traveling on FEML with the Soldier.

(d) Desired FEML dates.

(e) Explanation of extraordinary circumstances preventing leave during the normal time frame.

e. Leave accountability.

(1) At departure from EML/FEML duty location, chargeable leave begins one day after the Soldier arrives at the APOD.

(2) At departure from leave area, chargeable leave ends one day before the Soldier reports to the APOE.

(3) Travel is performed in a duty status, and is not chargeable as leave, per the JTR.

f. Use DA Form 31 to request and authorize leave for EML/FEML in accordance with paragraph 4–3 but click on EML or FEML dropdown, as appropriate.

g. Travel questions should be directed to the supporting travel and/or transportation office.

4–11. Rest and recuperation leave

a. The Rest and Recuperation (R&R) Leave Program provides Government-funded transportation from the rest and recuperation (R&R) duty location to the designation R&R destination.

b. R&R locations must meet criteria in DoDI 1327.06, to include—

(1) Be in a dependent-restricted area.

(2) Be in an area designated as eligible for HFP or IDP.

(3) Be in an area in which entry of Servicemembers is controlled.

(4) Be in an area where ordinary leave programs are restricted due to military necessity.

c. Recommendations to designate a specific duty location as an R&R location are made based on the applicable combatant commander's recommendation, through the major commander to Headquarters, Department of the Army (DAPE–MBB), Washington DC 20310–0512.

(1) Authorized R&R locations and destinations are listed in the JTR.

(2) Authorized R&R locations must be recertified every two years by the Principal Deputy Under Secretary of Defense (Personnel & Readiness) (PDUSD (P&R)), following the same procedures as initial requests.

d. Travel under the R&R Leave Program may not be combined with leave, administrative absences, temporary, pass, or travel for other purposes.

(1) Only combatant commanders are authorized to combine R&R travel with other authorized travel, upon the Servicemember's request. The combination of travel must be in the best interest of the Service. This authority may not be delegated below the general or flag officer or the senior executive service (SES) equivalent level.

(2) The DA, DoD Executive Agent for the U.S. Army Central Command (CENTCOM) R&R Leave Program is authorized to approve the combination of R&R travel with other authorized travel for Servicemembers in the CENTCOM area of responsibility. This authority may not be delegated below the general or flag officer or SES equivalent level.

(3) Eligibility for R&R leave.

(a) Soldiers must be on orders to HFP/IDP areas for at least 365 days.

(b) Soldiers projected for less than 270 days of continuous duty in the HFP/IDP area are not eligible for R&R.

e. The DA Form 31 will be used to request R&R leave, in accordance with paragraph 4–3 using R&R dropdown.

(1) The unit commander is the approval authority.

(2) R&R periods are limited to one trip per 12-month period.

(3) Travel to and from R&R areas is provided on a space-required basis, and is not charged to leave.

(4) Upon departure from eligible duty location, chargeable leave begins the day after the Soldier arrives at the APOD.

(5) Upon departure from R&R location, chargeable leave ends one day before the Soldier returns to the APOE.

4–12. Non-Chargeable Rest and Recuperation Leave Program

a. The Non-Chargeable Rest and Recuperation Leave Program (NCR&R), codified in 10 USC 705a, authorizes the Secretary of the Army to grant Soldiers serving in designated authorized R&R locations a non-chargeable administrative absence of up to 15 days to be used in conjunction with benefits provided under the R&R Leave Program.

b. Authorized NCR&R locations are subject to the R&R Leave Program policy contained in paragraph 4–11 of this regulation, unless specifically addressed in paragraph 4–12.

c. Recommendations to designate a specific duty location as an NCR&R location must be based on the applicable combatant commander's recommendation, through the major commander and Headquarters, Department of the Army (DAPE–MBB), Washington DC 20310–0512, to the PDUSD (P&R).

(1) Authorized NCR&R duty locations must be recertified every two years by the PDUSD (P&R).

(2) Recertification requests will follow the same procedures as initial requests.

d. Authorized NCR&R Leave Program locations must meet all of these criteria—

(1) Be an authorized R&R Leave Program area or location meeting criteria of paragraph 4–11 of this publication.

(2) Be in an area designated as a combat zone by Presidential Executive Order.

(3) Be in an area where hazardous duty pay is authorized or an area where Soldiers are subject to extremely arduous conditions, above and beyond those associated with other deployments/assignments. The combatant command submitting the request will detail the extremely arduous conditions.

(4) Be in an area where U.S. forces have been engaged in combat operations against a hostile force within the last six months and where combat operations are expected to continue for the next 6 to 12 months.

e. NCR&R will be limited to one per 270-day period assigned to, or one per 270-day deployment to, an approved R&R duty location (including extensions). Soldiers are limited to either one NCR&R administrative absence of up to 15 days or one R&R leave per 12-month period.

f. Combatant commanders are authorized to approve caregiver leave with NCR&R, upon Soldier's request, if the combination is in the best interest of the Army.

g. The applicable combatant commander will terminate the NCR&R Leave Program immediately when a location no longer meets criteria in paragraph 4–11 of this publication.

4–13. Court determination and/or child support leave

a. When a Soldier requests an absence on the basis of need to attend hearings to determine paternity or to determine an obligation to provide child support, ordinary leave or pass will be granted unless—

(1) The member is serving in or with a unit deployed in a contingency operation.

(2) Exigencies of military service require a denial of such request.

b. Non-chargeable absence, except for special pass, is not appropriate to attend hearings to determine paternity or to determine an obligation to provide child support.

4–14. Continuation or recall of retirees

a. Retiring Soldiers who are subsequently continued on, or are recalled to, active duty may have their leave, which accumulated during their service before retirement, carried over to their period of military service after retirement (see 10 USC 701).

b. However, the number of consecutive leave days that a recalled retiree may take can be limited for operational reasons.

c. Soldiers may not, as a condition of the continuation or recall action, be prohibited from taking leave accrued during the new period of military service.

d. Retirees recalled to active duty are not limited to 60 days of leave to sell back during a military career.

4–15. Saved leave balance

a. The SLB was established on 1 September 1976 and applies to leave accrued on 31 August 1976.

b. Soldiers with an SLB may use the leave before retirement or sell it back upon retirement.

c. SLB is tracked, maintained, and liquidated by DFAS.

d. As of late 2016, DFAS confirmed that a few Soldiers are still eligible for SLB.

Chapter 5
Non-Chargeable Leaves and Absences

5–1. Absence from duty—not chargeable as ordinary leave

a. All levels of command will manage both chargeable and non-chargeable absences to meet DoD intent for use and accountability and provide equitable policy and uniform program development in accordance with DoD requirements.

b. These categories of absence are non-chargeable as leave, in addition to those in paragraph 5–12—

(1) Convalescent leave (see para 5–4).

(2) Army Military Parental Leave Program (see para 5–5).

(3) Recruiting Assistance Leave Program (see para 5–6).

(4) Graduation leave, Military Academies (see para 5–7).

(5) Excess leave (see para 5–8).

(6) Graduation leave, Reserve Officer Training Corps (ROTC) (see para 5–9).

(7) Emergency leave of absence (ELA) (see para 5–10).

(8) Legal marriage (see para 5–11).

(9) Involuntary separation (see para 5–13).

(10) Proceed time (see para 5–14).

(11) Deliver or pick up vehicle from port (see para 5–15).

(12) Special R&R (see para 5–16).

5–2. Approval of administrative absence and leave of absence

a. Administrative absence and leave of absence were previously known as “permissive temporary duty” or “permissive TDY.”

b. Administrative absence/leave of absence is authorized for specific circumstances. It includes “permissive travel” to attend or participate in activities of an official nature to the benefit of DoD missions.

c. In approving requests, care must be taken to ensure that the planned absence clearly falls within criteria provided.

d. Absences not clearly falling within criteria are subject to normal leave and pass procedures.

e. Administrative absences and leaves of absence exceeding 30 days, with the exception of primary caregiver leave, are controlled at DCS, G–1 or as further delegated.

f. Authority to approve administrative absences and leaves of absence, unless otherwise stated in this regulation—

(1) Commanders, of units normally commanded by officers in the grade of lieutenant colonel (O–5) or higher, are authorized to approve up to ten days of administrative absence for eligible Soldiers, except as otherwise noted within this chapter.

(2) ACOM commanders and commanders having general court-martial convening authority (GCMCA) may delegate approval authority to a company commander or other leave approval authority for absences (administrative absence and excess leave) with involuntary or voluntary separations.

(3) Requests for more than ten days of administrative absence, except as otherwise noted, must be routed through an O–5 or O–6 level commander to U.S. Army Human Resources Command (AHRC–PDP–P), Dept. 480, 1600 Spearhead Division Avenue, Fort Knox, KY 40122–5408.

5–3. Rules to use administrative absence, including leave of absence

a. A non-chargeable absence from duty may be granted at no expense to the Government to perform a semi-official activity benefiting the Service and the Soldier.

b. The activity performed must not be required as part of the Soldier’s assigned duties. Further, administrative absence cannot be granted to perform public business. Public business relates to the assigned mission of the service activity, therefore, TDY is appropriate.

c. When public business is directed by an appropriate Government official at any time during an absence, the Soldier is entitled to payment of travel allowances. This entitlement arises regardless of any previous statement of

intent not to initiate a claim against the Government for reimbursement of expenses. The entitlement also arises regardless of a statement by the approving authority to that same effect. The directing agency is responsible for funding the TDY portion of the absence.

d. If a Soldier has started an administrative absence and a mission requirement arises, an order will be issued directing official TDY and revoking the remaining portion of the absence. The Soldier will be authorized to claim appropriate travel expenses and per diem allowances for the period of official TDY.

e. Travel clearance requirements must be completed by Soldiers desiring administrative absence outside the United States, or outside the foreign country of current assignment.

5–4. Convalescent leave

a. The Soldier's commanding officer or the hospital commander may grant convalescent leave to patients not yet fit for duty. Except for maternity convalescent leave, such leave will not exceed 30 days per period of hospitalization. In granting CLV, care must be taken to limit the duration to the minimum that is essential in relation to the diagnosis, prognosis, and probable final disposition of the patient. CLV exceeding 30 days will be controlled at the O–5 level, in coordination with the supporting military treatment facility (MTF), the U.S. Army Reserve Command (formerly USARC) Surgeon, or the Regional Support Command Surgeon. Travel entitlements that may be associated with convalescent leave are governed by the JTR.

b. Processing convalescent leave granted at an MTF.

(1) The MTF (based on DA Form 3349) will complete a DA Form 31 for the Soldier.

(2) The hospital commander, or a designee, is the approval authority for CLV; attending physicians may recommend but cannot approve CLV.

(3) DA Form 3349 must be issued and verified before CLV is approved.

(4) CLV may only be granted for a Soldier's own medical condition; it is not authorized to care for and/or to accompany Family members.

(5) The unit will—

(a) Annotate duty rosters as applicable.

(b) Maintain suspense copy in organization file in accordance with AR 25–400–2.

(c) Forward DA Form 31 to BN S1.

(6) The BN S1 will enter the action on the DA Form 4179, and forward a copy of the DA Form 31 to the DMPO within three working days of Soldier's return to duty.

c. Processing convalescent leave granted by unit commander.

(1) The unit will complete the DA Form 31.

(2) The unit commander or approved designee is the approval authority for 30 days or less. This period is extended following pregnancy and childbirth.

(3) DA Form 3349 must be issued and verified by an MTF, the USARC Surgeon, or the Regional Support Command Surgeon before CLV is approved.

(4) CLV begins the first calendar day after the Soldier is released from in-hospital status.

(5) The maximum CLV the commander may approve, except for maternity convalescent leave, is 30 days minus the number of CLV days previously approved by the MTF for the same condition.

(6) See Army Military Parental Leave Program (MPLP) regarding maternity convalescent leave.

(7) BN S1 enters leave data on DA Form 4179, including the control number, and maintains the DA Form 31 in a suspense file until the day before the authorized absence ends.

(8) BN S1 enters return date, time, and authority in block 16 of DA Form 31, and forwards the DA Form 31 to the DMPO within three working days after the Soldier returns to duty.

(9) If ordinary leave was authorized in conjunction with CLV, to and from dates, and number of chargeable leave days are noted in block 17.

5–5. Army Military Parental Leave Program

a. Application. The MPLP applies to active service Soldiers, Reserve Component Soldiers performing active Guard and Reserve duty or full-time National Guard duty for a period in excess of 12 months, and Reserve Component Soldiers performing duty under a call or order to active service in excess of 12 months. These Soldiers are referred to as "covered Soldiers." A period of active service of a Reserve Component Soldier may not be extended to permit the Soldier to take leave authorized under the MPLP. However, a Soldier can be extended on active service after a qualifying birth event for maternity convalescent leave when a competent medical authority (supported by the MTF commander, the USARC Surgeon, or the Regional Support Command Surgeon) determines it is medically necessary.

b. The entitlements for the Army Military Parental Leave Program are retroactive to 23 December 2016. The following conditions apply for qualifying birth events or adoptions that occurred from 23 December 2016 through 23 December 2018, hereafter referred to as the "MPLP retroactive period."

(1) Any leave taken under previously existing leave policy is not negated and will not be curtailed by implementation of this policy.

(2) Covered Soldiers who gave birth and received 12 or more weeks of non-chargeable maternity leave will be considered the designated primary caregiver, and thus not entitled to retroactive primary caregiver leave or maternity convalescent leave.

(3) Covered Soldiers who received 10 days of non-chargeable parental leave (also known as paternity leave) or up to 21 days of non-chargeable adoption leave may be retroactively designated as primary or secondary caregivers. They will receive a total of 42 days (for the primary caregiver) or 21 days (for the secondary caregiver) of non-chargeable leave (including any previously authorized non-chargeable leave) to be used within 18 months of the qualifying birth events or adoptions.

(4) In the case of a covered Soldier married to another covered Servicemember (for example, dual military couples), each Soldier may be retroactively designated as a primary or secondary caregiver and receive the appropriate total amount of non-chargeable primary or secondary caregiver leave. However, only one member of each couple may be designated the primary caregiver and one designated the secondary caregiver.

(5) Covered Soldiers remaining on active service or full-time National Guard duty may elect to have previously charged ordinary leave, which they used after the qualifying birth event or adoption, converted to non-chargeable leave (subject to the stated limits) or use the remainder of their non-chargeable leave entitlements within 18 months of the qualifying birth event or adoption. To request conversion of ordinary leave to non-chargeable primary or secondary caregiver leave, covered Soldiers may submit a DA Form 4187 (Personnel Action) with a copy of supporting documents (including DA Form 31) through their supporting DMPO to DFAS.

(6) Leave corrections. Soldiers who are no longer on active service or full-time National Guard duty cannot request corrections to their leave balances based on MPLP. They are not eligible for retroactive primary and secondary caregiver leave.

c. Leave entitlements under the Army Military Parental Leave Program. Three types of non-chargeable leave are authorized under the MPLP: maternity convalescent leave, primary caregiver leave, and secondary caregiver leave.

(1) Maternity convalescent leave.

(a) Is limited to a covered Soldier birthparent after a qualifying birth event. In cases when a baby is stillborn or the covered member suffers a miscarriage, convalescent leave (other than maternity convalescent leave) may be granted.

(b) Is limited to six weeks of non-chargeable leave, unless additional maternity convalescent leave is specifically recommended, in writing, by the medical provider of the covered member to address a diagnosed medical condition, is approved by an MTF commander, the USARC Surgeon's office or the Regional Support Command Surgeon, is entered as an e-Profile, and is approved by the member's commander. A covered birthparent may, with the agreement of a medical provider, request a period of maternity convalescent leave that is less than six weeks.

(c) Must be taken immediately after childbirth, except that the leave will not begin until the first full day after the date a covered Soldier is discharged or released from the hospital (or similar facility) where the birth took place.

(d) May be taken consecutively with either primary or secondary caregiver leave, but must be taken before any caregiver leave (for a maximum of 12 weeks in conjunction with primary caregiver leave or nine weeks in conjunction with secondary caregiver leave). If additional maternity convalescent leave is authorized and approved per paragraph 5–5*c*(1)(*b*), the full period of the extended maternity convalescent leave will be taken before any caregiver leave, and the amount of caregiver leave will be reduced one day for each day of additional maternity convalescent leave taken (that is, any maternity convalescent leave in excess of six weeks). Primary or secondary caregiver leave must be started within one year (or 18 months with respect to the MPLP retroactive period) of a qualifying birth event or adoption.

(e) Must be used in one increment.

(f) May be taken consecutively with approved ordinary leave. If taken with caregiver and ordinary leave, the Soldier must take the leave in this order: maternity convalescent leave, caregiver (primary or secondary) leave, ordinary leave.

(g) May not be disapproved by a commander.

(h) May not be transferred to create any kind of shared benefit.

(i) Will be forfeited if unused at separation from active service.

(2) Primary caregiver leave.

(a) Is limited to covered Soldiers designated as primary caregivers in conjunction with qualifying birth events or adoptions.

(b) Is limited to six weeks of non-chargeable leave and must be taken within one year (or 18 months with respect to the MPLP retroactive period) of a qualifying birth event or adoption. A designated primary caregiver may choose to receive a period of primary caregiver leave that is less than six weeks.

(c) May be taken consecutively with maternity convalescent leave and/or approved ordinary leave. However, primary caregiver leave may not be taken consecutively with chargeable terminal leave and/or administrative absence for transition. If taken consecutively with maternity convalescent leave, primary caregiver leave must be taken after maternity convalescent leave. If not taken in conjunction with maternity convalescent leave, it must be started within one year (or 18 months with respect to the MPLP retroactive period) of a qualifying birth event or adoption, or within one year after return from deployment (if the birth event occurred within 60 days before deployment or during deployment). If taken in conjunction with ordinary leave (other than terminal leave), the primary caregiver leave must be taken before the ordinary leave. If taken in conjunction with *both* maternity convalescent leave *and* ordinary leave (other than terminal leave), the Soldier must take the leave in this order: maternity convalescent leave, primary caregiver leave, ordinary leave.

(d) Must be taken in only one increment.

(e) May not be authorized in cases of a qualifying birth event when the child is given up for adoption or parental rights are terminated or surrendered.

(f) Eligibility, or the leave itself if started, terminates upon the death of the child. However, in those cases, covered members may be transitioned to an emergency leave status.

(g) Will be forfeited if any portion remains unused at separation from active service. It will also be forfeited if not used within the time periods established in paragraph 5 –5c(2)(b).

(h) May not be transferred to create any kind of shared benefit.

(3) Secondary caregiver leave.

(a) Is limited to covered Soldiers designated as secondary caregivers in conjunction with qualifying birth events or adoptions.

(b) Is limited to 21 days of non-chargeable leave and must be taken within one year (or 18 months with respect to the MPLP retroactive period) of a qualifying birth event or adoption. A designated secondary caregiver may choose to receive a period of secondary caregiver leave that is less than 21 days.

(c) May be taken in conjunction with maternity convalescent leave and/or approved chargeable (ordinary) leave, except it may not be taken consecutively with chargeable terminal leave and/or administrative absence for transition. If taken in conjunction with maternity convalescent leave, secondary caregiver leave must be taken after maternity convalescent leave. If not taken in conjunction with maternity convalescent leave, it must be taken within one year (or 18 months with respect to the MPLP retroactive period) of a qualifying birth event or adoption. If taken in conjunction with ordinary leave (other than terminal leave), the secondary caregiver leave must be taken before the ordinary leave. If taken in conjunction with both maternity convalescent leave and ordinary leave (other than terminal leave), the Soldier must take the leave in this order: maternity convalescent leave, secondary caregiver leave, then ordinary leave.

(d) Must be used in one increment.

(e) May not be authorized in cases of a qualifying birth event when the child is given up for adoption and/or parental rights are terminated or surrendered.

(f) Eligibility, or the leave itself if started, terminates upon the death of the child. However, in those cases, covered members may be transitioned to an emergency leave status.

(g) Will be forfeited if any portion remains unused at separation from active service.

(h) May not be transferred to create any kind of shared benefit.

d. Designation of primary and secondary caregivers.

(1) Primary and secondary caregiver designations will apply as those terms are defined.

(2) In the case of a qualifying birth event or adoption, the covered Soldier will request designation of the child's primary or secondary caregiver.

(3) Only one primary and one secondary caregiver may be authorized for each qualifying birth event or adoption.

(4) In no case will a covered member be designated as both a primary and secondary caregiver and permitted to receive both primary and secondary caregiver leave for the same qualifying birth event or adoption.

(5) In the case of a dual military couple, one covered Soldier will be designated as the primary caregiver and the other covered Soldier as the secondary caregiver. Each will be granted the caregiver leave associated with those respective designations. Caregiver leave is not transferable between members of a dual military couple.

(6) In the case of a member who desires designation as a primary or secondary caregiver for a qualifying birth event of a child(ren) born outside a marriage, the member's parentage of the child(ren) must be established per criteria prescribed by the Defense Enrollment Eligibility Reporting System (DEERS). Proof of parentage may include, but is not limited to, being listed (with consent) as a parent on the child's birth certificate or other Government-issued

document and written acknowledgment of an obligation to support the child, either by voluntary agreement or court order. Registration within the system must occur within 30 days of the birth. A birthparent is not required to establish proof of parentage.

(7) Designations of primary and secondary caregivers will be made as early as practicable. Under normal circumstances, designation should occur at least 60 days before the anticipated due date (in the case of a qualifying birth event) or anticipated date of a qualifying adoption.

e. Designation of primary and secondary caregivers who are currently deployed or within three months of an operational deployment.

(1) Covered members who are operationally deployed or within three months of an operational deployment may be designated as a primary or secondary caregiver.

(2) Operationally deployed Soldiers will be required to defer the primary or secondary caregiver leave until the Soldier completes the deployment. However, in exceptional and compelling circumstances, caregiver leave may be granted to operationally deployed covered Soldiers if the commander determines the absence will not adversely affect unit readiness. Higher-level commanders may restrict this authority.

(3) A Soldier within three months of an operational deployment may—

(a) Defer primary or secondary caregiver leave until the operational deployment is completed.

(b) With designation as secondary caregiver, and the unit commander's approval, use the 21 days of secondary caregiver leave immediately after the child's birth, even if the birth is within three months before deployment.

(4) Any period of deferral of caregiver leave under this section because of an operational deployment will be not be counted against the one-year period after a qualifying birth event or adoption for which members must take caregiver leave.

f. Primary and secondary caregiver leave as it relates to surrogacy.

(1) DoD policy does not authorize Soldiers to act as surrogates.

(2) A covered Soldier whose spouse serves as a surrogate and gives birth is not entitled to primary or secondary caregiver leave.

(3) In cases where a covered Soldier (or a covered dual military couple) uses a surrogate and the member (or couple) becomes the legal parent(s) or guardian(s) of the child, the event will be treated as an adoption. The Soldier(s) will be entitled to either primary or secondary caregiver leave.

g. Unused military parental leave.

(1) Soldiers forfeit any MPLP leave entitlements remaining unused at time of separation from active service.

(2) Primary or secondary caregiver leave not started at least one year (or 18 months with respect to the MPLP retroactive period) after the date of a qualifying birth event or adoption is forfeited. Leave is considered as "taken" if the Soldier started primary or secondary caregiver leave before the end of one year (or 18 months with respect to the MPLP retroactive period) after a qualifying birth event or adoption.

(3) Any MPLP leave entitlement for a covered Reserve Component member that is not taken before the member is separated from active service is forfeited—

(a) The period of active service of a covered Reserve Component member may not be extended solely to permit use of MPLP entitlements.

(b) Covered Reserve Component members will not be recalled to active service solely to permit use of MPLP entitlements.

h. Process to request and document caregiver leave.

(1) Three types of non-chargeable absence are authorized under the MPLP: maternity convalescent leave (42 days), primary caregiver leave (42 days), and secondary caregiver leave (21 days).

(2) Maternity convalescent leave of up to 42 days for qualifying birth events will be authorized by the supporting MTF or the Soldier's commander. Only an MTF, the USARC Surgeon's office, or the Regional Support Command Surgeon may approve maternity convalescent leave in excess of 42 days. All maternity convalescent leave exceeding 42 days will be deducted, one for one, from the birthparent's authorization for primary or secondary caregiver leave.

(3) Soldiers will use DA Form 31 to request primary caregiver leave. The leave cannot be granted until after the Soldier requests designation as the primary caregiver. In block 7 of the DA Form 31, the Soldier will select primary caregiver in the drop-down. The commander, or designated approving authority, may approve primary caregiver leave. However, if the Soldier requesting primary caregiver leave is not the birthparent or is not legally married to the birthparent, the Soldier must provide proof of parentage before leave may be granted. In case of adoption, the Soldier must provide legal documentation that the adoption is finalized before caregiver leave may be granted.

(4) Soldiers will also use DA Form 31 to request secondary caregiver leave. The leave cannot be granted until after the Soldier requests designation as the secondary caregiver. In block 7 of the DA Form 31, the Soldiers will select secondary caregiver in the drop-down. The commander, or designated approving authority, may approve secondary

caregiver leave. However, if the Soldier requesting secondary caregiver leave is not the birthparent or is not legally married to the birthparent, the Soldier must provide proof of parentage before leave may be granted. In case of adoption, the Soldier must provide legal documentation that the adoption is finalized before caregiver leave may be granted.

(5) Maternity convalescent leave will be entered on the DA Form 4179, as "CM." Primary caregiver leave will be entered on the log under code "CP." Secondary caregiver leave will be entered on the log under code "CS."

(6) The unit S1 or G1 will forward DA Forms 31 for MPLP leave to the supporting DMPO. Although primary and secondary caregiver leave are not convalescent statuses, the DFAS will temporarily track all three categories of MPLP leave as convalescent leave.

i. Process to designate caregivers.

(1) Soldiers must submit a DA Form 4187 (Personnel Action) to request designation as a primary or secondary caregiver.

(2) The DA Form 4187 must be submitted through the chain of command for the commander's approval before the S1/G1 submits it to iPERMS for inclusion in the Soldier's personnel records.

(3) The DA Form 4187 should be submitted about 60 days before the estimated date of birth or finalized adoption. However, caregiver leave cannot be granted until after the birth or finalized adoption of the child(ren). In addition, non-birthparents not legally married to the birthparent must provide proof of parentage before caregiver leave may be granted.

(4) In Section III of the DA Form 4187, the Soldier will check "Other," and type in "caregiver designation."

(5) In Section IV of the DA Form 4187, Soldiers should use these comments—

(a) The birthparent, if not married to another Servicemember, will state either "I request designation as the primary caregiver for my child, due to be born on about DDMMMYYYY," or "I request designation as the secondary caregiver for my child, due to be born on about DDMMMYYYY."

(b) The birthparent, if married to another Servicemember, will state either "I request designation as the primary caregiver for my child, due to be born on about DDMMMYYYY, and my spouse, (GRADE Last, First, MI), will request designation as the secondary caregiver _____ (initials of spouse)," or "I request designation as the secondary caregiver for my child, due to be born on about DDMMMYYYY, and my spouse, (GRADE Last, First MI), will request designation as the primary caregiver _____ (initials of spouse)."

(c) The non-birthparent, if married to a non-Servicemember, will state either, "I request designation as the secondary caregiver for my child, due to be born on about DDMMMYYYY," or "I request designation as the primary caregiver for my child, due to be born on about DDMMMYYYY."

(d) The non-birthparent, if having a child with another Servicemember but not married to the other Servicemember, will state either "I request designation as the primary caregiver for my child, due to be born on about DDMMMYYYY, and I hereby certify that the birthparent, (GRADE Last, First, MI), will request designation as secondary caregiver," or "I request designation as the secondary caregiver for my child, due to be born on about DDMMMYYYY."

(e) The non-birthparent, if married to another Servicemember, will state either "I request designation as the primary caregiver for my child, due to be born on about DDMMMYYYY, and my spouse, (GRADE Last, First, MI), will request designation as the secondary caregiver _____ (initials of spouse)," or "I request designation as the secondary caregiver for my child, due to be born on about DDMMMYYYY, and my spouse, (GRADE Last, First, MI), will request designation as the primary caregiver (initials of spouse)."

(f) The non-birthparent, if not married to the nonmilitary birthparent, will state either "I request designation as the primary caregiver for my child, due to be born on about DDMMMMYYYY," or "I request designation as the secondary caregiver for my child, due to be born on about DDMMMYYYY."

(g) For adoptions, a single Soldier will state either "I request designation as the primary caregiver for my child, whose adoption will be finalized on about DDMMMYYYY," or "I request designation as the secondary caregiver for my child, whose adoption will be finalized on about DDMMMYYYY."

(h) For adoptions, a married Soldier not married to another Servicemember will state either, "I request designation as the primary caregiver for my child, whose legal adoption is due to be finalized on about DDMMYYYY, or "I request designation as the secondary caregiver for my child, whose legal adoption will be finalized on about DDMMMYYYY.

(i) For adoptions, a Soldier married to another Servicemember will state either "I request designation as the primary caregiver for my child, whose legal adoption is due to be finalized on about DDMMMYYYY, and my spouse, (GRADE Last, First, MI), will request designation as the secondary caregiver _____ (initials of spouse)," or "I request designation as the secondary caregiver for my child, whose legal adoption will be finalized on about DDMMMYYYY, and my spouse, (GRADE Last, First, MI), will request designation as the primary caregiver _____ (initials of spouse)."

5–6. Recruiting Assistance Leave Program

a. An O–5 level commander may grant up to 14 days of non-chargeable absence for Soldiers to provide assistance to U.S. Army Recruiting offices, per AR 601–2.

b. Recruiting assistance leave may be authorized in conjunction with ordinary leave, without a duty day in between.

c. Recruiting assistance leave may not be extended with a pass or other non-chargeable absence.

5–7. Graduation leave, United States Military Academy

a. A non-chargeable absence may be granted to commissioned graduates of the United States Military Academy, the United States Naval Academy, or the United States Air Force Academy who, upon graduation, are appointed into any component of the Armed Forces.

b. The superintendent of the academy, or approved designee, is the approval authority.

c. An absence of up to 60 days may be authorized in accordance with 10 USC 702. However, the superintendent may limit such leave to 30 days except on a case-by-case basis when the graduate is waiting for a training course to begin.

d. This leave is not charged to the officer's leave account; it must be used within three months of the officer's graduation and before the officer reports to the first duty location or port of embarkation for permanent duty OCONUS.

e. Soldiers ordered to temporary duty when on graduation leave may revert to leave status on completion of such duty.

f. DA Form 31 is used to request graduation leave.

(1) Leave may be granted for after graduation and before reporting to the first duty station. However, leave must be completed within three months of graduation.

(2) The DA Form 31 will encompass the entire period of absence from date of graduation to reporting date at PDS.

(3) In case of a lengthy TDY enroute, two DA Forms 31 may be used, one from commissioning to the reporting date at the TDY location, and the other from TDY school graduation to the PDS reporting date.

(4) TDY and any other non-chargeable days will be noted in block 17.

g. Extensions of the graduation leave period beyond 60 days for the convenience of the Soldier will be charged to the officer's leave account.

5–8. Excess leave

a. Excess leave is a no-pay status; therefore, entitlement to pay and allowances and leave accrual stops on the first day of excess leave.

b. Soldiers who become disabled while in an excess leave status are not entitled to receive disability retired pay, in accordance with 37 USC 502, 37 USC 503, and 10 USC 706. However, Soldiers disabled while not entitled to basic pay while on active duty may be covered for disability if participating in an educational program or for an emergency purpose, as determined by the Secretary of the Army (10 USC 1201 through 1203).

c. Excess leave may be authorized in emergencies provided that the aggregate of all leave granted (accrued + advance + excess) does not exceed 60 days and that accrued and advance leave is used before excess leave.

d. Compassionate action (see AR 614–200 or AR 614–100) should be considered in cases where emergencies require the Soldier to be absent for more than 60 days.

e. Accrued leave must be totally expended before using excess leave, except for procurement programs.

(1) The amount of excess leave varies with each program.

(2) Excess leave is authorized by regulations governing each category of personnel procurement.

(3) Participants are not required to use accrued leave before placement in excess leave status.

(4) If not used, accrued leave balances are retained until the Soldier resumes duty in a pay status.

(a) ROTC graduates (see para 5–12).

(b) Soldiers awaiting punitive discharge (see chap 6).

(c) Soldiers pending administrative discharge (see chap 6).

(d) Soldiers being involuntarily separated.

(5) Excess leave is normally not authorized at separation, except for involuntary excess leave awaiting punitive or administrative discharge (see chap 6).

f. The DA Form 31 for excess leave must include this statement in block 17, "I understand that excess leave is without pay and allowances, so I am not entitled to disability retirement or separation for disability incurred in an excess leave status except as provided in 10 USC 1201(c)." Counseling must include that excess leave is without pay and allowances, and leave does not accrue while the Soldier is in an excess leave status.

5–9. Graduation leave, Reserve Officers Training Corps

a. Either excess leave, if requested, or advance leave, may be granted to ROTC graduates, including those in early commissioning programs.

b. Either the Professor of Military Science (PMS) administering the oath of office or the commander of the new duty station may authorize up to 30 days of excess leave if the Soldier enters active duty within 30 days after graduation.

c. Soldiers entering active duty more than 30 days after graduation lose their entitlement to excess leave. However, they may request advance leave.

d. The unit or PMS will counsel the Soldier, ensuring the Soldier understands that Soldiers are not entitled to disability retired pay if physical disabilities occur while on excess leave (with exception for participation in an educational program or for an emergency purpose, as determined by the Secretary of the Army (10 USC 1201 through 1203)). Counseling must include that excess leave is without pay and allowances, and leave does not accrue while the Soldier is in an excess leave status.

e. DA Form 31 is used to request excess leave—

(1) Complete blocks 2 through 11, and block 17. Block 3 may be completed after leave is approved.

(2) In block 7, check "non-chargeable" and then "excess leave."

(3) In block 17, add, "I understand that I am not entitled to physical disability retired pay should I become ill or injured while in an excess leave status."

(4) The PMS, or commander of the new duty station, may at the Soldier's request—

(a) Grant Soldiers entering active duty on graduation day up to 30 days of excess leave.

(b) Grant Soldiers entering active duty within 30 days after graduation excess leave until the 30th day following graduation.

(c) Soldiers entering active duty more than 30 days after graduation are not eligible for excess leave. Their entitlement to excess leave is lost, but they may request and be granted advance leave.

5–10. Emergency leave of absence

a. The Secretary of the Army, or as delegated, may grant a Soldier a one-time non-chargeable ELA for a qualifying emergency.

b. An ELA is not the same type of absence as emergency leave (a chargeable leave status).

c. ELA may be used only after all ordinary leave has been exhausted.

d. A request for advance leave should be submitted. If ELA is subsequently approved, up to fourteen days of advance leave (chargeable leave) may be changed to ELA (a non-chargeable absence).

e. The qualifying emergency must be verified based on information or opinion from a source in addition to the Soldier. The source must be considered to be objective and reliable, such as the American Red Cross.

f. Qualifying emergencies are due to the medical condition of a member of the Soldier's immediate Family or any other hardship that the Secretary of the Army determines appropriate.

g. ELA may be granted only once during any Servicemember's military career.

h. ELA will be requested for the minimum time required, and will not exceed fourteen days, including extensions.

i. Requests for ELA are submitted on a DA Form 4187 (Mark "other," and add "Emerg Leave of Absence.") They must be recommended for approval by an O–6 or higher-level commander. The G1 will forward them, with supporting documentation, directly to the Chief of Compensation & Entitlements, DCS, G–1 (DAPE–PR), 300 Army. Pentagon, Washington, DC 20310–0001.

5–11. Obtain a legal marriage

a. A non-chargeable administrative absence may be granted for eligible Soldiers to travel to a nearby jurisdiction to obtain a legal marriage.

b. Eligible Soldiers are those who are part of a couple who desire to get married and are assigned to a PDS located more than 100 miles from a U.S. State, the District of Columbia, or other jurisdiction that allows the couple to marry.

c. The unit commander or designee may approve up to 10 non-chargeable days for Soldiers stationed OCONUS.

(1) The duration of the non-chargeable absence will be based on the travel time to the nearest state or jurisdiction that allows marriage.

(2) The possible waiting period required by law in that jurisdiction before a marriage license may be issued or before the marriage may be performed.

(3) The commander or designee must approve the minimum number of non-chargeable days required to obtain the marriage certificate.

(4) This administrative absence may be combined with chargeable leave for the convenience of the Soldier, without a duty day in between and without requiring the Soldier to return to the local area to transition between the two types of absence.

(5) Commanders will consider operational military requirements of the unit when deciding whether to grant a request for administrative absence.

d. The Soldier is responsible for providing supporting documentation to determine the appropriate number of non-chargeable days for travel/marriage. At a minimum, the documentation must include details regarding possible waiting periods.

e. Upon return from the authorized absence, the Soldier must provide a copy of the marriage certificate to the commander.

(1) If the Soldier fails to provide the marriage certificate, the commander will normally direct that the absence be converted to chargeable leave.

(2) Commanders retain discretion not to convert the absence to chargeable leave when circumstances indicate a valid attempt to get married that was unsuccessful.

f. The following statement must be included in Block 17 (Remarks) or as an attachment to the DA Form 31 requesting administrative absence to obtain a legal marriage: "I am requesting administrative absence to travel to a state or jurisdiction where marriage is legal in order to get married. I understand that the administrative absence to obtain a legal marriage is authorized only once during my military career. I also understand that failure to provide proof of marriage within five days after my return may result in the entire absence being charged as ordinary leave." ____ [Soldier's Initials].

g. Soldiers who were required to travel more than 100 miles from the then current PDS on or after 13 August 2013 in order to have a legal marriage performed, and were charged ordinary leave, may request restoration of up to seven days of annual leave (CONUS PDS) or up to 10 days (OCONUS PDS).

(1) The Soldier must provide an LES documenting ordinary leave charged and proof of marriage.

(2) The S1 will forward the documentation through the supporting DMPO to DFAS, requesting adjustment of leave records.

5–12. Appropriate uses for administrative absence and leave of absence

a. Administrative absence/leave of absence will not be granted if TDY is appropriate.

b. Administrative absence/leave of absence is not authorized during periods when Government travel and transportation allowances are authorized.

c. Appropriate uses for administrative absence/leave of absence include the following:

(1) *Professional meetings.* Attendance at meetings sponsored by recognized non-Federal technical, scientific, professional (for example, medical, legal, and ecclesiastical) societies and organizations. The meetings must have a direct relationship to the Soldier's professional background or primary military duties and clearly enhance his or her value to the Army. Commanders in the grade of colonel (O–6) and above may approve up to 10 days for attendance at private organization meetings.

(2) *Transition Assistance Program seminars.* Commanders in the grade of O–5 and above may approve up to seven days for attending a DoD-sponsored TAP seminar, when the seminar cannot be locally scheduled and the Soldier will separate or retire within 180 days.

(3) *Credit union board meetings.* A member of the board of directors of a DoD credit union may be authorized an administrative absence to attend meetings of associations, leagues, or councils formed by DoD credit unions. Commanders in the grade of O–5 and above may approve up to four days for meetings directly related to DoD credit union programs.

(4) *Competitive sporting and other events.* Commanders in the grade of O–5 and above may approve up to 10 days to participate in Army or DoD-sponsored competitive sporting events and essential support of participants in competitive sporting and other events. Administrative absence for longer time periods and for competition in other recognized events must be forwarded through the supporting G–1 to Chief of Compensation & Entitlements, DCS, G–1 (DAPE–PR), 300 Army, Pentagon, Washington, DC 20310 –0001, or by email at least 60 days before the event.

(5) *Legal witness/Jury duty.* Attendance in response to a subpoena, summons, or request instead of process, as a witness only at State or Federal criminal investigative proceeding. Criminal prosecution must be of substantial public interest, such as major crimes, where the Soldier would be an essential witness. Absence for legal witness must be coordinated through the command legal office, and will normally not exceed ten days. Jury duty will be for jurisdictions in the local area, from which the Soldier normally commutes to and from work, and in accordance with local policy. Commanders in the grade of O–5 and above are the approval authority.

(6) *Professional development.* Administrative absence for professional development is for participation in military programs that enhance the Soldier's value to the U.S. Army or the Soldier's understanding of the military and his or her relationship to it, when a funded TDY is inappropriate. Commanders in the grade of O–5 and above may approve up to 10 days. Administrative absence of more than 10 days must be submitted through an O–5 or higher-level commander to U.S. Army Human Resources Command (Reserve Personnel Management Directorate, Officer Personnel Management Division or Enlisted Personnel Management Division), 1600 Spearhead Division Avenue, Fort Knox, KY 40122–5208. However, the approval authority for professional development for students currently attending advanced education programs governed by AR 621–1 and AR 621–7, is U.S. Army Human Resources Command (HRC–OPL), 1600 Spearhead Division Avenue, Department 280, Fort Knox, KY 40122–5208. Information in this paragraph does not apply to the Career Skills Program (CSP), educational leaves of absence, and civilian education programs.

(7) *Retirement presiding official.* For participation in an official military retirement ceremony as the presiding official, the administrative absence authorized may not exceed three days and is limited to one presiding official per retirement ceremony. Commanders in the grade of O–5 or above may approve up to three days.

(8) *Post deployment or mobilization respite absence (PDMRA).* This category of administrative absence applies to Soldiers required to deploy or mobilize above DoD rotation frequency thresholds established by the Secretary of Defense, per DoDI 1327.06. The Secretary of the Army has directed a deployment-to-dwell ratio 1:2 for Regular Army members and mobilization-to-dwell ratio of 1:5 for Reserve Component members as the qualifying threshold for providing PDMRA benefits. Questions regarding PDMRA should be sent through the supporting G–1 to Office of the Deputy Chief of Staff, G–1, 300 Army Pentagon, DAPE–PRC, Room 2B453, Washington, DC 20310–0300, email: usarmy.pentagon.hqda-dcs-g-1.mbx.dape-prctravel@mail.mil.

(9) *House hunting.* House hunting is only authorized due to a PCS to another duty station, when Government quarters are not immediately available or, if available, are not required to be occupied. Soldiers who are not moving their household, and Soldiers who will immediately occupy Government quarters, are not eligible for house hunting. Either the losing commander may grant eligible Soldiers up to 10 days that must be used before signing in to the new PDS, or the gaining commander may grant eligible Soldiers up to 10 days after in-processing. Soldiers must have PCS orders or a request for orders directing reassignment to the new PDS. If PCS is to OCONUS, Soldiers must have an unaccompanied or non-concurrent travel entitlement to settle his or her Family in the designated area. Soldiers must visit the supporting housing services office before making any arrangements to rent, lease, or purchase housing. This paragraph does not apply to Soldiers retiring or otherwise transitioning from military service.

(10) *Transition administrative absence.* Participation in pre-separation job search and house hunting activities that facilitate relocation or transition of the Soldier to civilian life is authorized under this paragraph only for Soldiers being involuntarily separated from active duty under honorable conditions and Soldiers retiring from active duty. Commanders in the grade of O–5 and above are the approval authority, but approval may be delegated to company commanders.

(a) Transition administrative absence (TAA) is an authorization, not an entitlement.

(b) Soldiers who are not relocating and have accepted a post-military employment offer are not eligible for TAA.

(c) Soldiers voluntarily separating as a result of expiration of term of service (ETS) or expiration of service agreement are not eligible for TAA. This includes Soldiers unable to remain in the Army because they did not reenlist during their reenlistment windows.

(d) Soldiers transitioning from the Army under conditions other than honorable (for example, with a dishonorable, bad conduct, or other than honorable discharge characterization) are not eligible for TAA.

(e) Officers classified as release from active duty (REFRAD) are not eligible for TAA.

(f) Soldiers with approved voluntary separation under the Voluntary Early Release Program or Enlisted Voluntary Early Transition Program are not eligible for TAA.

(g) Soldiers receiving an early separation for pregnancy are not eligible for TAA.

(h) Soldiers authorized early separation to attend school, participate in employment programs, or begin employment are not eligible for TAA.

(11) *Involuntary separation.* Soldiers retiring from active duty, and Soldiers being involuntarily separated from active duty under honorable conditions per 10 USC 1141, may be granted an involuntary separation administrative absence (ISAA) to carry out necessary relocation activities such as job search or residence search activities, unless doing so would interfere with mission requirements. Commanders in the grade of O–5 and above are the approval authority, but approval may be delegated to company commanders.

(a) ISAA is an authorization, not an entitlement.

(b) Soldiers who are not relocating and have accepted a post-military employment offer are not eligible for ISAA.

(c) Soldiers voluntarily separating as a result of expiration of term of service (ETS) or expiration of service agreement are not eligible for ISAA. This includes Soldiers unable to remain in the Army because they did not reenlist during their reenlistment windows.

(d) Soldiers transitioning from the Army under conditions other than honorable (for example, with a dishonorable, bad conduct, or other than honorable discharge characterization) are not eligible for ISAA.

(e) Officers REFRAD are not eligible for ISAA.

(f) Soldiers with approved voluntary separation under the Voluntary Early Release Program or Enlisted Voluntary Early Transition Program are not eligible for ISAA.

(g) Soldiers receiving an early separation for pregnancy are not eligible for ISAA.

(h) Soldiers receiving an early separation to attend school, participate in employment programs, or begin employment are not eligible for ISAA.

(i) The non-chargeable absence will not to exceed 20 days total for CONUS Soldiers (ten days TAA plus ten days ISAA).

(j) The non-chargeable absence will not to exceed 30 days total for OCONUS Soldiers returning to CONUS (ten days TAA plus 20 days ISAA).

(k) Soldiers meeting criteria for TAA and ISAA who were domiciliaries before entering active duty and continue to be domiciliaries of states, possessions, or territories of the United States located OCONUS, or of foreign countries, when stationed at a location other than the state, possession, territory, or country of their domicile, may be authorized up to a total of 30 days (ten days TAA plus 20 days ISAA) to be used only in the state, territory, possession, or country of their domicile, for job search or residence search activities.

(12) *Non-medical attendant.* To accompany a dependent patient to a designated medical facility as a non-medical attendant or to join a dependent patient when the Soldier's presence is deemed essential by the patient's attending physician or hospital commander.

(a) CONUS. Soldiers in CONUS must obtain written verification from the servicing MTF commander or designee of the necessity for their presence.

(b) An O–5 or higher-level commander may authorize ten days or less.

(c) Soldiers who wish to remain more than 10 days with a dependent patient who is not seriously ill or in critical condition will do so in a chargeable leave status.

1. Requests to extend administrative absence for non-medical attendants, with supporting documentation, should be sent to U.S. Army Human Resources Command (AHRC–PDP–P), Dept. 480, 1600 Spearhead Division Avenue, Fort Knox, KY 40122–5408 or at email: usarmy.knox.hrc.mbx.tagd-leave-and-pass-policy@mail.mil.

2. Soldiers desiring an extension should request the initial ten days plus ordinary leave through their normal leave approval authority. If an extension is subsequently justified and approved by HRC, DFAS will convert the ordinary (chargeable) leave days to an administrative (non-chargeable) absence.

3. Extension requests must include—

a) Soldier's grade, name, DoD identification number, unit of assignment.

b) Name of official who approved the initial request.

c) Date initial request started, and number of days granted (attach DA Form 31).

d) Dates and number of days requested for the extension.

e) Name, phone number, and email address of requester.

f) Relationship of Family member to sponsor.

g) Medical documentation including patient's medical condition and prognosis.

h) Expected duration of hospitalization.

i) Statement explaining need for the Soldier's presence.

4. OCONUS Soldiers are not authorized this category of administrative absence. Policy and procedural guidance on nonmedical attendants accompanying dependent patients within an overseas area or from overseas to CONUS is in the JTR.

(13) *Educational leave of absence.* Soldiers eligible in accordance with 10 USC 708 may be authorized an educational leave of absence (EDLA) not to exceed two years for pursuing a program of education. However, an eligible Soldier pursuing a program of education in the health care profession may request up to three years.

(a) EDLA approval rests at Headquarters, Department of the Army level, and as further delegated. Furthermore, approval will only be granted when in the best interest of the Government.

(b) For the purpose of this program, an "eligible Soldier" is any Soldier on active duty who is eligible for basic educational assistance under 38 USC 3021 who completed at least one term of enlistment and reenlisted (enlisted Soldiers) or completed his or her initial period of obligated military service on active duty (officers).

(c) If stationed OCONUS, the Soldier is within 12 months of completing his or her full overseas tour of duty. However, the full overseas tour of duty must be completed before beginning any EDLA. Soldiers not stationed in the United States or one of its territories must PCS back to a unit in the United States or one of its territories before starting an EDLA.

(d) Soldiers will not be granted an EDLA until after the Soldier agrees in writing to extend his or her current enlistment (enlisted Soldiers) or to serve on active duty (officers) after completion (or other termination) of the program of education for a period of two months for each month of EDLA. Furthermore, an EDLA may not be granted until the Soldier has completed any enlistment or reenlistment extension, or any period of obligated military service, incurred by reason of any previous EDLA per 10 USC 708.

(e) Even though EDLA is a non-chargeable absence, the Soldier will be charged leave during scheduled school breaks unless he or she returns to duty with the unit of assignment during the breaks.

(f) Carry over of leave exceeding 60 days at the end of the FY will not be authorized unless earned under auspices of SLA.

(g) Soldiers on EDLA will not receive entitlements governed by the JTR. See DoD 7000.14–R regarding pay and allowances.

(h) Time on EDLA will count toward computation of the Soldier's basic pay, eligibility for retired pay, and time-in-grade for promotion purposes. However, EDLA may not count toward the completion of the term of enlistment for enlisted Soldiers or for entitlement to supplemental educational assistance per 38 USC 3021.

(i) In time of war or national emergency, as declared by the President or Congress, the Secretary of the Army may terminate any EDLA granted under 10 USC 708. Furthermore, the Secretary of the Army may terminate an EDLA when the Secretary determines that the Soldier is not satisfactorily pursuing the program of education for which the absence was granted.

(14) *Career Skills Program.*

(a) An administrative absence not to exceed 180 days may be authorized for Soldier participation in Career Skills Programs validated in accordance with AR 600–81.

(b) Approval authorities—

1. The first O–6 level commander in the Soldier's chain of command with Uniform Code of Military Justice (UCMJ) authority may approve up to 60 days of administrative absence for participation in programs validated per AR 600–81. This authority may be delegated to subordinate O–5 level commanders, but is not further delegable.

2. Commanders having general court-martial convening authority may approve up to 180 days of administrative absence to attend a validated CSP activity. The authority may be delegated to subordinate O–6 level commanders, but is not further delegable.

(c) Request requiring administrative leave in excess of 180 days will not be considered.

(d) Parameters for participation in a CSP, and grounds for removal, are covered in AR 600–81.

(e) Planning must include sufficient time after completion of CSP for Soldiers to return to their permanent duty station to complete physical and administrative out-processing requirements in accordance with AR 600–8–101, to include unit-level and installation-level out-processing and final out, before the separation or retirement date.

(f) CSP attendance may not be extended with any other absence, to include ordinary leave and pass. The days of administrative absence authorized for CSP must include travel to the CSP location and return to the permanent duty station.

(g) Separation or retirement dates will not be extended to allow for CSP attendance, or to allow terminal leave after attending CSP.

(h) Attendance at CSP is not a basis for authorizing SLA.

(i) The following statement must be included on the DA Form 31 requesting administrative absence to participate in a CSP: "This absence is not directed by any official of the U.S. Government. I cannot conduct public business under this authorization. Accordingly, I will not be entitled to reimbursement for travel, per diem, or any other expenses. I may end this absence by returning to my unit and signing in, either before or on the projected ending date."

5–13. Involuntary separation or retirement

a. The S1 will notify the unit and Soldiers of authorization to request administrative absence or excess leave in conjunction with involuntary separation or retirement (including medical retirements).

b. The unit will counsel Soldiers on the use of administrative absence or excess leave.

c. The Soldier must—

(1) Use DA Form 31 to request either administrative absence or excess leave, if desired.

(2) Request either administrative absence or excess leave, but not both.

(3) Complete blocks 2 through 11, as applicable. Block 3 may be completed after approval.

(4) Include this statement in block 17: "This absence is not directed by any official of the U.S. Government. I cannot conduct public business under this authorization. Accordingly, I will not be entitled to reimbursement for travel, per diem, or any other expenses."

(5) Include either "Administrative absence from (*date*) to (*date*)," or "Excess Leave from (*date*) to (*date*)" in block 17.

d. Commanders may—

(1) Establish oversight and control to ensure Soldiers are at the appointed place when departing and returning from chargeable and non-chargeable absences.

(2) Deny or limit TAA/ISAA based on mission or operational requirements.

(3) Limit the number of days authorized for chargeable and non-chargeable absence when readiness and mission accomplishment would be impaired. However, personnel underlap will not be the sole reason for disapproval.

(4) Recall Soldiers who have departed on administrative absence, but only for reasons such as investigations, UCMJ proceedings, or when stop loss has been declared.

e. TAA/ISAA may be granted in a series of trips before departing on transition (not to exceed a total of 20 days CONUS or 30 days OCONUS).

(1) If taken in a series of trips, a duty day must be worked between each absence.

(2) TAA/ISAA may not be combined with ordinary leave, except for terminal leave.

(3) Soldiers requesting a series of trips must be advised that administrative absence begins and ends on post, duty location, or at location where Soldier regularly commutes to and from work.

(4) A separate DA Form 31 will be completed and processed for each administrative absence.

(5) Block 17 must indicate, "Soldier is authorized [number of days] administrative absence in conjunction with transition for [reason]."

f. TAA/ISAA may be taken in one block in conjunction with terminal leave. It may be taken either leave first, and then the administrative absence, or administrative absence first and then leave.

(1) TAA/ISAA may not be used in increments after the Soldier permanently departs the duty station or station of choice.

(2) All transition processing, including unit and installation clearance, must be complete before the Soldier departs on administrative absence in conjunction with terminal leave.

(3) Retirement dates will not be adjusted to accommodate TAA/ISAA.

g. Travel clearance requirements must be met by Soldiers requesting terminal leave, administrative absence, or excess leave outside the United States or OCONUS area of current assignment (see para 2–11 to 2–13).

h. The unit and BN S1 will follow leave processing procedures, ensuring a copy of the DA Form 31 is forwarded to the transition center for inclusion in the Soldier's separation packet.

5–14. Proceed time

a. Proceed time is an authorization not an entitlement, and the unit commander or designee is the approval authority.

b. Proceed time is a non-chargeable absence only authorized to Soldiers going to or coming from a restricted overseas tour per AR 614–30.

c. Proceed time is granted to Soldiers to accomplish actions associated with disestablishing or establishing a residence, such as changing vehicle licensing, and changing residence for taxation or voting purposes.

d. Proceed time may be taken in increments, but will not exceed a total of four days.

e. The Soldier must be entitled to transportation of dependents and/or shipment of household goods, and must actually relocate either household goods and/or dependents.

f. Proceed time is not intended for military check-out and check-in procedures. Military administrative requirements such as visits to the military personnel division (MPD), BN S1, security and pass offices, billeting offices, and quarters clearance will be accomplished in a duty status.

g. Proceed time is requested using DA Form 31. If used in increments (one or two days at a time), separate DA Forms 31 will be used for each request.

h. Proceed time may be used—

(1) Before the Soldier is scheduled to depart for a new PDS.

(2) Between PDS.

(3) Immediately following arrival at a new PDS.

i. Proceed time may not be granted—

(1) To Soldiers assigned to their first PDS.

(2) Incident to separation, REFRAD, or retirement.

(3) To augment or substitute for leave or pass.
(4) On intra-installation reassignment or between two PDS located in proximity to one another.
(5) To augment or substitute for administrative absence for house hunting.
j. Proceed time will not be granted by the losing commander if it would result in missing the ORDTGC.

5–15. Delivering or picking up a privately owned vehicle from a port

a. Non-chargeable travel time may be granted to deliver or pick up a vehicle at a port or vehicle processing area in conjunction with an OCONUS move.
b. The unit commander or approved designee is the approval authority.
c. Travel entitlements to deliver or pick up a vehicle before, during, or after a PCS move are governed by the JTR.
d. Soldiers will be granted the minimum time needed.
e. Soldiers will request travel time to pick up or deliver a vehicle using DA Form 31.

5–16. Special rest and recuperation—extensions of overseas tour

a. A non-chargeable absence may be granted to enlisted Soldiers in certain specialties voluntarily extending overseas tours in accordance with 10 USC 705.
b. Soldiers electing special R&R options are not authorized COT-related entitlements.
c. The unit commander or approved designee is the approval authority.
d. The Soldier must meet all of these criteria—
(1) Permanent assignment to an authorized position designated by the Secretary of the Army.
(2) Approval of military occupational specialty (MOS) eligibility by the Secretary of the Army.
(3) Overseas tour completion and approval of tour extensions per AR 614–30.
e. Leave options.
(1) Special R&R must be taken in one increment.
(2) Special R&R may be approved in conjunction with TDY.
f. Travel entitlements, costs, and restrictions, including use of U.S.-certified air carriers for commercial foreign air transportation, are per the JTR.

Chapter 6
Chargeable and Non-Chargeable Leave Combinations

6–1. Leave awaiting orders as a result of disability proceedings

a. Soldiers awaiting results of disability separation proceedings (see AR 635–40) may request to be ordered home on PCS leave only if the Soldier's case meets these criteria—
(1) The informal or formal Physical Evaluation Board (PEB) determined the Soldier unfit, and the PEB adjudication was not conditional pending review of a line of duty determination.
(2) The Soldier concurred with the PEB determinations, is not requesting reconsideration of VA ratings, and is not requesting continuation on active duty or in active Reserve status.
(3) The Soldier's case does not require a review or action above the U.S. Army Physical Disability Agency (HQUSAPDA).
b. PCS leave is charged to the extent maximum leave is accrued. Any authorized absence in excess of accrued leave is not chargeable as leave, and the Soldier remains entitled to pay and allowances.
c. The unit commander is the approval authority, but approval may be restricted to higher-level commanders.
d. The process to request leave awaiting orders as a result of disability proceedings—
(1) The Soldier uses DA Form 31, completing block 2 through 11 (in block 7 checking "combinations" and then "Awaiting orders as result of disability proceedings").
(2) In block 17, note "PCS home."
(3) The unit must—
(a) Coordinate with the Soldier's Physical Evaluation Board liaison officer (PEBLO) to confirm the Soldier meets criteria of subparagraph 6–1*a* above, and to confirm the PEBLO has the Soldier's PCS contact information.
(b) Verify with the supporting MTF that the Soldier has no pending medical appointments or medical issues requiring his or her presence in the vicinity of the duty location.
(c) Obtain Soldier's signature on a counseling statement advising that, "PEB findings are subject to review by HQUSAPDA and are not final until approved by HQUSAPDA. A review may require the Soldier to return to the MTF for additional medical examinations or to undergo a reconvened or directed formal hearing. The Soldier must remain

available for contact by the unit and the PEBLO until the effective date of disability retirement or separation." Forward a copy of the signed and dated counseling statement to the PEBLO.

(d) Forward the action to the commander for approval/disapproval.

(e) Follow leave processing procedures in paragraph 4–3 and guidance in paragraph 6–1*d*.

(f) If the leave request is approved, contact the Soldier on at least a weekly basis and notify the commander of the Soldier's status until the Soldier is separated or retired from the Army.

6–2. Leave awaiting punitive discharge

a. Soldiers who have been sentenced by court-martial to be dismissed or to receive a punitive discharge may be required to take excess leave (leave of absence without pay) pending completion of appellate review.

b. Authority to direct such leave rests with the officer exercising GCMCA over the Soldier.

c. Soldiers may be required to begin their leave at any time on or after the date on which the sentence is approved.

d. The leave may be continued until a time when the final review is completed and the sentence is executed.

e. The authority that approved this leave may terminate it at any time by written notice.

f. When confinement is included as part of the approved sentence, the period of confinement must have been served or deferred before the beginning of leave.

g. The GCMCA may direct involuntary excess leave if—

(1) Soldier is sentenced by court-martial to dismissal or a punitive discharge.

(2) Discharge or dismissal is unsuspended.

(3) Soldier is awaiting completion of appellate review.

(4) Confinement has been served, deferred, or suspended prior to the beginning of leave, when included as part of the approved sentence.

h. The GCMCA approves punitive discharge under UCMJ, Article 60.

i. The GCMCA will cause Soldier to be notified in writing of the intent to consider him or her for involuntary excess leave. Soldiers are given reasonable time, normally 72 hours, in which to present matters supporting a request to continue on duty, if desired.

j. The GCMCA will decide each situation on a case-by-case basis, taking these factors into consideration if reasonably available—

(1) The Soldier's service record.

(2) The offenses for which the Soldier was convicted and sentence adjudged.

(3) The Special Court-Martial Convening Authority's recommendation.

(4) The Staff Judge Advocate's recommendation.

(5) Whether the Soldier demonstrated potential to be productive and beneficial to the Army by continuing on active duty pending appellate review.

(6) Any hardship or other adverse consequences the Soldier may experience if required to take excess leave involuntarily.

(7) Other information the officer considers appropriate.

k. Excess leave ends upon final judgment (Rules for Court-Martial (RCM) 1113 and 1209), when the sentence is ordered executed, or other appropriate action is promulgated, or at any earlier time as authorized by the GCMCA.

l. DA Form 31 will be used to place Soldiers in voluntary or involuntary excess leave status.

(1) Block 17 must state, "I understand that while I am in an excess leave status no leave accrues, no pay and allowances are earned, and I am not entitled to physical disability retired pay should I become ill or injured."

(2) Soldiers in an excess leave status while awaiting punitive discharge are ineligible for space available transportation (CONUS and overseas).

(3) Whether excess leave status is voluntary or involuntary, block 17 will be over-stamped "Space Available Travel Restriction Imposed."

(4) The unit and BN S1 will follow applicable leave processing procedures.

m. Soldiers required to take leave, and who have accrued leave, may elect one of the following:

(1) Receive pay and allowances during the period of accrued leave, with absence beyond accrued leave charged as excess leave.

(2) Receive payment for leave accrued to the day before excess leave begins, with all of the required absence charged as excess leave.

(3) Receive payment for a portion of the accrued leave; receive pay and allowances during the rest of the accrued leave, and excess leave for the rest of the required absence.

n. Soldiers required to take leave may be authorized travel (see JTR).

o. Soldiers in an involuntary or voluntary excess leave status while awaiting punitive discharge are ineligible for space available transportation (CONUS and overseas). "Space Available Travel Restriction Imposed" will be typed in block 17 of the DA Form 31.

p. Pay and allowances for Soldiers required to take leave are governed by DoD 7000.14–R and AR 37–104–4.

q. If the court-martial sentence is set aside or disapproved—

(1) Soldier receives pay and allowances for period of required excess leave if a rehearing or new trial does not result in a dismissal or a dishonorable or bad conduct discharge.

(2) The Soldier's pay and allowances must be reduced by the amount of income and public assistance benefits received during period of excess leave.

6–3. Leave awaiting administrative discharge

a. Soldiers awaiting completion of administrative discharge proceedings may be granted leave, provided that the aggregate of all leave granted (accrued + excess) does not exceed 60 days.

b. A leave extension of up to 60 days may be approved at the discretion of the commander exercising GCMCA, if in his or her opinion the best interest of the Department of the Army would be served by approving the extension request.

c. Additional excess leave extensions of up to 60 days each may be approved by the commander exercising GCMCA. The approval of leave extensions cannot be delegated.

d. Soldiers must use ordinary leave until their accrued leave is exhausted, at which time they will enter excess leave status. Advance leave is not authorized.

6–4. Authority to require an officer to take leave pending review of recommendation for removal by a board of inquiry

a. When a board of inquiry recommends that an officer not be retained on active duty, said officer may be required to take leave pending the completion of his or her case (see 10 USC 1182).

b. The officer may be required to begin such leave at any time following his or her receipt of the report of the board of inquiry, including the board's recommendation for removal from active duty, and the expiration of any period allowed for submission by the officer of a rebuttal to that report.

c. The leave may be continued until the date on which action by the Secretary of the Army is completed, or may be terminated at any earlier time.

d. An officer who is required to take such leave and, as a result, incurs excess leave and whose recommendation for removal from active duty in a report of a board of inquiry is not approved by the Secretary of the Army, will be paid for the period of leave charged as excess leave.

Chapter 7
Pass

7–1. Regular pass

a. A short, non-chargeable, authorized absence from post or place of duty during normal off-duty hours is a regular pass. For example—

(1) The weekend, for Soldiers normally working Monday thru Friday, is a regular pass period that extends from Friday after duty until the beginning of duty on the following Monday.

(2) A three-day official holiday weekend, including either Friday thru Sunday or Saturday thru Monday, is a regular pass period. This regular pass period extends either from Thursday after duty (for Friday holidays) until the beginning of duty on Monday, or from Friday after duty (for Monday holidays) until the beginning of duty on Tuesday.

(3) A regular pass may not, under any circumstances, exceed four days. The only occasion for a four-day regular pass is when a Federal holiday falls on a Thursday (or a Tuesday) and the President designates the accompanying Friday (or Monday) as a day off.

b. DA Form 31.

(1) A DA Form 31 is usually not required for a regular pass if the Soldier will remain in the vicinity of his or her normal duty station, unless use of the form ensures the Soldier is not selected for duty during the period of absence.

(2) A request for pass will not be combined with a request for leave on the same DA Form 31.

(3) The unit commander or approved designee is the approval authority for pass.

c. Reduced manning days approved by leadership, formerly known as days of non-scheduled activity, are considered a pass period even if not requested with a DA Form 31.

d. As required by unit recall policy, Soldiers must be readily available to return to duty, remaining in an available-for-duty-status during normal non-duty hours unless absence is authorized.

e. A regular pass begins and ends on post, at duty location, or at the location from where Soldier normally commutes to duty. The Soldier must be physically at one of these locations when departing to or returning from a regular pass.

f. A regular pass will normally be from the end of normal duty hours on one day to the beginning of working hours the next duty day. The standard for calculating a pass period is to count calendar days, not on the number of hours to be taken.

g. A regular pass may be authorized during periods of TDY. The following applies:

(1) Commanders at TDY locations may authorize special passes. (See the JTR for travel entitlements.)

(2) A pass period may be authorized after departure from the PDS and before the beginning of the TDY period, or after completing TDY and before returning to the PDS.

(3) However, payment of per diem during pass periods is not authorized (see DFAS–IN Regulation 37–1).

(4) The Soldier must enter such pass periods in DTS and on the DD Form 1351–2 (Travel Voucher or Subvoucher).

h. A regular pass may be granted together with leave. The following apply:

(1) A pass begins and terminates on post, at the duty location, or at the location from where Soldier normally commutes to duty before leave begins.

(2) Leave begins and terminates on post, at the duty location, or location from where Soldier normally commutes to duty before a pass begins.

(3) Leave and pass will not be combined on the same DA Form 31.

(4) Only one leave period may be granted in conjunction with a pass.

i. AWL may be charged if the Soldier does not return at applicable times, unless an extension was requested and granted, resulting in leave.

j. Travel clearance requirements are applicable for travel outside the United States and for travel outside the territory or foreign country of current assignment (see para 2–11).

k. If a Soldier is undergoing treatment for a contagious disease, a pass is limited to emergency or urgent matters, and only authorized if the treating physician certifies that public health will not be jeopardized, per AR 40–400.

l. The unit will—

(1) Advise the Soldier that both pass and leave begin and end at the appointed times on post, at duty location, or at the place where the Soldier normally commutes to duty.

(2) Advise Soldiers that failure to be on post, at duty location, or at the place where the Soldier normally commutes to duty when starting and ending leave and pass may result in punishment under the UCMJ.

(3) Advise Soldier that AWL applies if he or she fails to return at the appointed time, unless an extension was requested and granted resulting in leave.

(4) Not process leave requests if travel clearance has not been obtained for travel from CONUS to outside the United States, or outside the territory or foreign country of current assignment, per paragraph 2–11.

(5) Follow applicable leave and pass processing procedures.

7–2. Special pass

a. A short, non-chargeable, authorized absence from post or place of duty may be granted using a special pass.

b. A special pass may not, under any circumstances, exceed four days.

c. There are two kinds of special passes: three-day and four-day.

d. A three-day special pass must include at least one duty day, and may be for—

(1) Tuesday, Wednesday, and Thursday, depending on unit duty requirements. Soldier may depart on Monday at end of the duty day, and must return on Friday no later than start of the normal duty day.

(2) Friday, Saturday, and Sunday. Soldier may depart on Thursday at the end of the duty day, and return on Monday at start of the normal duty day.

(3) Saturday, Sunday, and Monday. Soldier may depart on Friday at the end of the duty day, and return on Tuesday at start of the normal duty day.

e. A four-day special pass must include at least two consecutive non-duty days, and may be for—

(1) Saturday, Sunday, Monday, and Tuesday. Soldier may depart on Friday after normal duty, and must return not later than start of normal duty on Wednesday.

(2) Thursday, Friday, Saturday, and Sunday. Soldier may depart on Wednesday after normal duty, and must return not later than start of normal duty on Monday.

(3) Friday, Saturday, Sunday, and Monday. Soldier may depart on Thursday after normal duty, and must return no later than start of normal duty on Tuesday.

f. A special pass may not be immediately followed by any other pass.

g. A special pass may be combined with leave without a duty day between the two periods of absence. However, the Soldier must be physically present at the PDS, post, duty location or local residence area (defined as where the Soldier commutes daily to work) to start and end both the leave and pass period.

h. DA Form 31 may be used to request a special pass.

(1) Leave and pass will not be combined on the same DA Form 31.

(2) Local commands may require use of the DA Form 31 for special passes, even if Soldiers will remain in the vicinity of their normal duty stations. The DA Form 31 should be used if using the form ensures that Soldiers are not selected for duty during approved periods of absence.

(3) The unit commander or approved designee is the approval authority for special pass.

i. Reasons to grant a special pass—

(1) As special recognition for exceptional performance of duty.

(2) To attend spiritual retreats or observance of other major religious events requiring the Soldier to be continuously absent from work or duty.

(3) To exercise voting responsibilities of citizenship.

(4) To alleviate personal problems incident to military service.

(5) As compensatory time off—

(a) For long or arduous deployment from home station.

(b) For duty in an isolated location where regular pass is inadequate.

(c) Following periods of continuous duty of excessive duration.

(d) For Soldiers on duty during a Federal holiday. Such time off will be granted the first duty day after the holiday (including the observed day), except in unusual circumstances.

j. A special pass may be authorized together with TDY. The following additional restrictions apply:

(1) Soldiers on authorized pass during a TDY period are in an official duty status. Therefore, they are entitled to allowances for temporary duty travel for personal reasons to the permanent station and return. However, the allowances paid cannot exceed the amount they would have received had they not returned to the permanent station, per the JTR.

(2) A special pass may be authorized before departure from the PDS prior to the TDY period.

(3) A special pass may be authorized on completion of TDY before returning to the PDS. Payment of per diem for such pass periods is not authorized per DFAS–IN Regulation 37–1 and the JTR.

(4) The Soldier must identify inclusive dates of pass periods to the BN S1, and enter pass periods in DTS and on the DD Form 1351–2.

k. A Soldier is in an available-for-duty status when he or she returns from pass.

l. AWL applies if Soldier does not return at applicable time unless extension was granted resulting in leave.

m. A pass will not be approved if travel destination is outside the United States or outside the territory or foreign country of current assignment and travel clearance has not been obtained (see para 2–11 to 2–13).

7–3. Pass extension

a. Soldiers on pass who request and are approved absence beyond authorized pass period, due to emergency or unforeseen urgent personal reasons, will be charged leave.

b. Leave is charged for the portion of absence that exceeds the authorized pass period, if an extension is approved by the commander.

c. If an extension is not approved, the Soldier must return within the authorized pass period. If the extension is not approved and the Soldier does not return within the authorized pass period, charge AWL to the Soldier's leave account.

d. The unit and BN S1 will follow leave processing procedures and disciplinary procedures if necessary.

7–4. Processing a pass extension

a. When a unit commander approves a Soldier's request for an extension exceeding the previously authorized pass—

(1) If Soldier is in the local area when the pass ends, only the portion of the absence exceeding the previously approved pass will be charged as leave.

(2) If Soldier is not in the local area when the pass ends, the entire absence is charged as leave.

(3) The unit will inform the Soldier of the approval, and send confirmation by email.

(a) The unit will issue a DA Form 31, noting authorization in block 17.

(b) Soldier will sign block 11, if available.

(c) If Soldier is not available, he or she may sign upon return from absence.

b. If the request for pass extension is not approved—

(1) The unit will inform the Soldier of the disapproval, and send confirmation by email.

(2) The Soldier will be advised to return to duty as scheduled.

7–5. Armed Forces Liberty Pass

a. A valid common access card will suffice to identify a Soldier on authorized absence not classified as leave.

b. Soldiers should also carry, or have ready access to orders when in a PCS or TDY status.

Chapter 8
Leave Together with Permanent Change of Station and Temporary Duty

8–1. Using leave together with permanent change of station and temporary duty

a. A chargeable leave may be granted in conjunction with PCS or TDY.

b. Commanders will—

(1) Manage leave together with PCS and TDY to meet DoD intent for its use and accountability.

(2) Provide policy, uniform program development, and DoD requirements.

(3) Establish procedures for granting leave together with PCS and TDY.

(4) Use DA Form 31 to grant leave together with PCS and TDY.

c. The gaining command will process a new DA Form 31 if a Soldier is directed to additional training after departure from previous command.

8–2. Granting permanent change of station leave

a. The unit will query the Soldier to determine whether they desire to take leave.

b. The commander or approved designee will grant at least 30 days of chargeable leave, except as noted in paragraph 8–2*c*, unless the Soldier requests less leave, or military operational requirements restrict or preclude leave.

c. Maximum prescribed leave—

(1) Rotational moves (PCS to, from, and between overseas areas), 30 to 40 days.

(2) Operational moves (PCS to and from units within CONUS and overseas command), normally 30 days.

(3) PCS moves involving no travel funds, normally 15 days.

(4) Advance leave may be authorized, if ordinary leave is insufficient.

(5) Excess leave may be granted, but only for emergencies or unusual circumstances.

(6) Soldiers may report early to gaining command, unless orders state “early report not authorized.”

(7) Losing commander will release Soldiers in time to reach new station by reporting date, taking leave, travel, and TDY into consideration.

d. The Soldier’s DA Form 31 must cover entire absence from departure at losing installation to reporting date in orders.

(1) In case of a lengthy TDY enroute, two DA Forms 31 may be used, one covering from day of departure from losing command to TDY reporting date, and the other from date of departure from TDY school to ORDTGC.

(2) Periods of non-chargeable absence must be noted in block 17.

e. A deletion or deferment must be requested if the reporting date must be changed for any reason.

f. COT leave may be authorized for use either in CONUS or OCONUS.

g. Travel and transportation entitlements are per the JTR.

h. Travel clearance requirements are applicable for OCONUS travel or travel outside the territory or foreign country of current assignment (see para 2–11).

8–3. Authorizing leave for accession moves

a. ROTC graduates—

(1) Normally, no more than 30 days of leave is authorized enroute to the first permanent duty station (see para 5–9).

(2) PMS administering the oath initiates the DA Form 31. If the PMS cannot initiate the form, the commander at the new duty station initiates the DA Form 31 for leave used enroute to that station.

(3) ROTC graduates may request excess leave.

b. Warrant Officer Candidate or Officer Candidate School graduates—

(1) Normally, 30 days leave is authorized enroute to their next permanent duty station.

(2) Leave may be granted upon completion of candidate training, after completion of the officer basic entry course, or after other functional training.

c. For basic combat training (BCT) and advanced individual training (AIT)—

(1) Leave during training is only authorized for emergencies.

(2) If the first PDS is in CONUS, ten days leave enroute is authorized. (Additional leave may be authorized for emergencies or unusual situations.)

(3) If first PDS is OCONUS, 14 days leave enroute is authorized. (Additional leave may be authorized for emergencies or unusual situations.)

(4) Leave must not preclude Soldiers from meeting scheduled reporting dates for additional training.

(5) Scheduled reporting dates for additional training will not be changed solely to accommodate leave plans.

d. Trainees completing BCT are authorized up to seven days of leave when they are assigned—

(1) To an operational unit in CONUS for on-the-job training.

(2) As a permanent party Soldier by virtue of civilian-acquired skills.

(3) To an AIT longer than 24 weeks. Soldiers who do not take leave are attached to the AIT installation in a duty status until class begins.

e. For trainees completing BCT and going to an AIT longer than 20 weeks followed by airborne training—

(1) Normally, seven days of leave is authorized enroute to AIT.

(2) No leave is authorized between AIT and airborne training.

f. Trainees who take Christmas and New Year holiday leave during BCT are not authorized ordinary leave after BCT.

g. Self-paced AIT may result in changes to enlisted Soldier availability dates (due to early or late graduation).

h. Soldiers will not be forced to take leave due to early graduation.

i. Leave and travel time will not be credited toward completion of the 12-week minimum basic training requirement that must be met by Soldiers assigned outside the United States, its territories, and possessions under 10 USC 671.

j. Port call date and arrival month may be adjusted for Soldiers moving OCONUS by submitting request to HRC, per AR 612–201.

k. Trainees not granted leave after BCT, and progressing from initial MOS training to higher skill MOS training, may be authorized seven leave days if combined MOS training exceeds ten weeks.

l. Trainees not granted leave following BCT and completing AIT, who are scheduled for functional training, other than airborne training, enroute to an initial assignment may be authorized up to 7 days leave enroute.

m. Total leave between BCT and initial assignment may not exceed ten days, except in emergency situations.

n. Soldiers may be authorized ordinary leave, advance leave, or excess leave in conjunction with accession moves.

o. Administrative absence for house hunting is not authorized as part of an accession move.

8–4. Steps to authorize leave for accession moves

a. The unit will counsel the Soldier on use of advance and excess leave, and assist the Soldier in completing DA Form 31.

b. Counseling will include cautions in regard to advance leave, to include—

(1) Advance leave is later charged against ordinary leave, as it accrues to the Soldier.

(2) If advance leave converts to excess leave, collection of pay and allowances is required.

(3) Soldiers using a large amount of advance leave may be unable to take ordinary leave for a year or longer, until the advance leave is requite.

c. The unit commander is the approval authority for leave for accession moves, within regulatory limitations for type of leave authorized.

8–5. Using permanent change of station leave enroute together with temporary duty

a. Leave may be authorized in conjunction with TDY when operationally feasible.

b. Soldiers arriving at TDY locations earlier than the date specified on their orders may not be authorized per diem prior to the specified reporting date in the TDY orders.

c. The TDY must be clearly essential.

d. Use of PCS leave may not result in additional cost to the Government.

e. The unit commander or approved designee is the approval authority.

f. Commanders must ensure that Soldiers going TDY in conjunction with PCS have both TCS and PCS orders in hand before departure from the losing organization.

8–6. Steps to use permanent change of station leave enroute together with temporary duty

a. Dates in the DA Form 31 must cover from day of departure from the losing command to the ORDTGC.

b. If there is a TDY of more than 29 days, the Soldier may be issued two DA Forms 31, one from day of departure from losing command to TDY reporting date, and the other from the date of graduation/departure from TDY location to the ORDTGC.

c. A DD Form 1610 (Request and Authorization for TDY Travel of DoD Personnel), per DTS, and PCS orders will be prepared and issued. PCS orders will be prepared in accordance with AR 600–8–105.

d. The commander will—

(1) Ensure TDY was not arranged to provide transportation for leave at Government expense.

(2) Avoid appearance that TDY was arranged to serve the leave desires of the Soldier.

e. The unit and BN S1 will—

(1) Follow TDY processing procedures in accordance with AR 600–8–105 and/or DTS.

(2) Follow applicable leave processing procedures.

(3) Follow applicable PCS processing procedures.

(4) Follow applicable travel clearance procedures.

f. After arrival at the gaining command, the DMPO will—

(1) Compute leave, travel, and TDY, as applicable.

(2) Convert excess travel time to absence without leave (AWL), unless the delay is deemed outside of the Soldier's control by the gaining commander.

g. If Soldier selects TDY and return to the losing duty station before departing on PCS—

(1) The TDY will be processed through the DTS.

(2) Leave granted in conjunction with TDY will be categorized as "ordinary leave."

(3) Leave granted in conjunction with the PCS portion will be categorized as "PCS leave."

(4) The Soldier will process the TDY portion through the DMPO at the losing installation before completing clearance for PCS.

8–7. Determining availability dates and port call

a. The applicable regulation is AR 55–46.

b. The availability date is the earliest date travelers can arrive at the transportation facility (APOE) for overseas movement.

c. Leave, estimated travel time, and TDY time, when applicable, between the losing station and the APOE are used to determine the Soldier's availability date.

d. If no TDY is involved, losing commanders will not depart Soldiers until travel instructions and travel documents have been provided to the Soldier per AR 600–8–11, and the Soldier has fully cleared the installation per AR 600–8–101.

e. If TDY is involved, TDY activities will not depart Soldiers until port call is verified—

(1) Travel instructions and travel documents were provided to the Soldier per AR 600–8–11.

(2) Appropriate counseling was provided per the DTR.

(3) Leave was extended, if necessary, in coordination with the ATAC at HRC.

Chapter 9
Christmas-New Year Holiday Period for Personnel in Training

9–1. Granting leave for Christmas-New Year holiday period for Soldiers in training

a. The Christmas-New Year holiday period is from 20 December through 2 January (14 days).

b. Commanders will generally allow Soldiers the opportunity to take leave during the holiday period.

c. Before establishing travel dates, or authorizing leave, the training facility commandant must consider chargeable leave, non-chargeable absence, and leave in conjunction with PCS and—

(1) Ensure Soldiers complete at least 12 weeks of BCT before assignment to active duty on land outside the United States and its territories and possessions.

(2) Discourage traveling or reporting to a new duty station on Christmas or New Year's Day.

(3) Coordinate course changes with servicing the DMPO, transportation and travel offices, especially accelerated graduation of Soldiers scheduled for overseas assignments.

(4) Establish provisions for makeup instruction to Soldiers granted leave through Three Kings Day (6 January).

(5) Ensure coordination between training activities and local transportation offices to effect orderly departure of Soldiers using commercial transportation.

(6) Suspend training and processing activities if consistent with operational requirements.

(7) Ensure accelerated training is reported as provided for in paragraph 9–1*c*(13).

(8) Commanders may approve leave for permanent party commencing before, during, or after the official holiday period, within the constraints of operational requirements.

(9) For trainees and students, commanders will approve leave for the uniform holiday period.

(10) Under these conditions, major commanders may deviate up to three days from scheduled departure and termination dates for trainees and students—

(a) Commercial transportation facilities cannot accommodate the traffic requirements.

(b) To avoid changes to scheduled training graduation dates.

(c) For Soldiers to receive makeup or refresher training as required.

(11) Commanders may grant additional leave to residents of Puerto Rico and other countries observing Three Kings Day. This time permits Soldiers to observe that day with their families in the resident country.

(12) Commanders may grant additional leave to permanent party if it does not conflict with operational and training requirements.

(13) Accelerated or compressed training—

(a) Is limited to BCT, one-station unit training, or AIT classes or cycles scheduled to graduate 4 through 10 January.

(b) School commanders must report accelerated dates to HRC no later than 75 days before a Soldier's availability date.

(c) Soldiers in U.S. Army Training and Doctrine Command (TRADOC) units must graduate not later than 20 December and arrive at the next duty station by 4 January.

(14) Army training center commanders may extend BCT training for Soldiers returning after the holiday period, subject to—

(a) BCT cycles interrupted by exodus (all Soldiers depart and return from holiday leave at the same time) may be extended to allow for two days of remedial training, if coordinated with Headquarters, TRADOC. The extension cannot exceed two days.

(b) AIT start dates must be adjusted to accommodate the two-day extension.

9–2. Processing at the military entrance processing stations during December

a. From 1 through 5 December, military entrance processing stations (MEPS) will process and ship individuals to reception stations in the normal manner.

b. From 6 through 25 December, MEPS will encourage individuals to enter the Delayed Entry Program, with emphasis on filling all school seats against the first reception station week of the new year.

c. After 25 December, MEPS will process and ship individuals to the reception station in the normal manner.

d. MEPS will counsel Soldiers entering active duty during the holiday period that leave will not be granted while at the reception station.

e. MEPS will provide January training dates for trainees who desire to go on active duty during the holiday period.

9–3. Rules to grant leave to Reserve Officer Training Corps on three-month active duty for training

a. Terminal leave.

(1) Commanders may authorize up to 7 days of ordinary leave to ROTC Soldiers with seven days or less remaining to complete active duty for training, to be used at transition.

(2) Soldiers must complete all out-processing requirements before starting leave.

(3) The unit will use DA Form 31 to grant leave.

(4) Soldiers are released to the U.S. Army Reserve or Army National Guard at the time of leave.

(5) The three-month service requirement will not be extended to allow for leave.

(6) Leave is credited toward completing the three-month service obligation since leave is considered active Federal Service.

b. Ordinary leave.

(1) Accrued leave may be combined with advance leave to permit absence while school instruction is suspended (holiday leave, for example).

(2) If school instruction is suspended and the Soldier must continue training after the holiday period, commanders may authorize accrued, advance, and excess leave. However—

(a) The three-month service requirement cannot be extended.

(b) Leave periods are credited toward completing the three-month service obligation since leave periods are considered active Federal service.

(3) If advance leave may convert to excess leave, the commander will ensure the Soldier is counseled on effect on pay and allowances when entering an excess leave status.

c. Not returned to duty. Soldiers will not be returned to duty at the home station to avoid using leave while school instruction is suspended.

d. Procedures. The unit and BN S1 will follow applicable leave processing procedures.

9–4. Leave after completing Army National Guard and U.S. Army Reserve initial active duty for training

a. Soldiers without accrued leave may be permitted departure from training activities on or before the holiday period if the Soldier—

(1) Was on initial active duty for training (IADT) for a minimum of 12 consecutive calendar weeks.

(2) Completed MOS training requirements before the start of the holiday period.

(3) Received a cash, lump-sum payment for unused accrued leave.

b. Commanders may out process and authorize leave for IADT Soldiers with accrued leave if—

(1) Soldier completed MOS training.

(2) Soldier completed at least 12 consecutive calendar weeks of training from date of entry on IADT.

(3) However, alternate training program trainees are exempt from the 12 consecutive week requirement.

c. Commands will not require IADT Soldiers to return to the training activity for out processing.

d. Orders issued or changed by training activities must—

(1) Place Soldiers on leave to the place from which they were ordered to IADT.

(2) Show the number of days leave and authorized travel time.

(3) Include the IADT termination date, which should be not less than 12 consecutive calendar weeks from date Soldier entered IADT.

Chapter 10
Changes in Leave

10–1. Attachments

a. Attachment of Soldiers with an OCONUS PDS at Army installations or activities when on leave in CONUS, Hawaii, or Alaska is in accordance with AR 614–100 or AR 614–200.

b. The attaching commander may require official verification of emergency situation from the American Red Cross, a medical facility, or another official agency before granting up to 10 days emergency leave.

c. The unit of attachment will coordinate with the parent unit, and send a copy of the approved DA Form 31 when leave is granted.

d. Requests for more than ten days of emergency leave must be submitted to the commander of the Soldier's parent organization.

e. Per diem entitlements are per the JTR.

10–2. Granting leave during attachment

a. The Soldier requests leave from the unit of attachment. The commander is the leave authority.

b. The attaching unit notifies the parent unit when leave is granted to an attached Soldier.

c. The attaching unit adds "ATCH" after the Soldier's name on the DA Form 4179, and follows applicable processing procedures.

d. A copy of the DA Form 31 is forwarded to the parent unit.

e. The parent unit and the attaching unit will maintain DA Forms 31 in accordance with AR 25–400–2.

10–3. Determining leave status after confinement by civil authorities

a. Soldiers on authorized leave or pass who are confined by civil authorities will be continued in leave or pass status until expiration of leave or pass.

b. Absence over leave or pass due to detention by civil authorities is considered AWL unless excused as unavoidable, per DoD 7000.14–R.

c. Soldiers held in confinement in an overseas area by military authorities for, and at the request of, civil authorities pending trial by civilian court will be continued in leave or pass status until expiration of leave or pass per AR 27–10.

d. These Soldiers are in an authorized leave absence status until expiration of leave (at the Soldier's option) or pass, in accordance with DoD 7000.14–R.

10–4. Requesting leave extension

a. Leave extension requests will be submitted to the current (losing) unit commander, except for—

(1) Soldiers, on PCS leave in CONUS while enroute from one CONUS unit to another CONUS unit, will submit request for leave extension to the gaining commander.

(2) Soldiers, on PCS leave in CONUS while enroute from a CONUS unit to an OCONUS unit, will submit request for leave extension to the gaining commander.

(3) Soldiers, on PCS leave in CONUS while enroute from an OCONUS unit to a CONUS unit, will submit request for leave extension to the gaining commander.

(4) Soldiers may submit request for extension of leave in person, by telephone, or email through the appropriate overseas commander, military installation, or activity nearest the leave address or the American Red Cross.

(5) Soldiers on PCS leave requiring a leave extension due to a family emergency, such as death or serious illness of an immediate Family member, may request leave extension through ATAC at HRC. The ATAC telephone number is 1–800–582–5552, fax 1–502–613–4560, email: askhrc.army@mail.mil.

(6) Leave extension requests will be submitted 72 hours in advance of expiration of leave.

b. When an extension is not approved, the Soldier will report for duty per the Soldier's DA Form 31.

c. Commanders will ensure that—

(1) Soldiers are briefed on how to request a leave extension before departing on leave.

(2) Soldiers are given the appropriate telephone numbers (Defense Switched Network (DSN) and commercial) to call if a situation should occur that would require a leave extension.

(3) Soldiers are discouraged from reporting to the APOE early to save leave.

(a) Soldiers may incur financial and personal hardship by reporting early.

(b) PCS leave should be used as scheduled unless new travel arrangements are booked in advance through a Government Travel Office.

10–5. Calculating chargeable leave following death

a. Soldiers who die while on leave will not be charged for a day of leave on the day death occurs.

b. Soldiers who die while in a travel status with leave enroute will not be charged for a day of leave on the day that death occurs.

c. The unit will annotate DA Form 31, block 17, to show date of death and last day of chargeable leave (the day before the day of death).

d. The BN S1 will follow leave processing procedures and assist the casualty assistance center.

10–6. Recalling Soldiers from leave

a. The commander is the recall authority when Soldiers on authorized leave must return to duty for reasons of military necessity.

b. Travel and transportation allowances for recalled Soldiers are per the JTR.

c. Travel questions will be directed to the local travel or transportation office.

d. The BN S1 will coordinate with the MPD if orders are required for reimbursement of travel and transportation expenses.

e. Orders formats to be used are in accordance with AR 600–8–105.

f. The unit and BN S1 will follow leave processing procedures.

10–7. Managing leave during mobilization

a. These rules are designed to provide equitable management of leave based on local situations.

b. The senior area commander may, based on military necessity, announce specific restrictions regarding military absences.

c. The senior area commander may announce a prohibition against granting leave under certain conditions including—

(1) National emergency declared by executive order by the President or Congress of the United States.

(2) Declaration of war.

d. The commander's annual leave program may need modification based on mission requirements imposed by higher headquarters.

(1) Leave for mobilized Soldiers may be limited to short periods and personal emergencies only.

(2) Soldiers must physically report for duty before leave requests will be considered.
(3) Soldiers may be recalled from leave.

Chapter 11
Leave Management

11–1. Leave control

a. DA Form 4179 begins with a control sequence number of "0001" at the start of a new FY. The first leave commencing at the start of a new FY receives the number "0001."

b. Subsequent leaves are numbered consecutively.

c. DA Forms 4179 and DA Forms 31 must be filed and maintained in accordance with AR 25–400–2.

d. The DMPO will determine chargeable leave, using DD Form 1351–2 (Travel Voucher or Subvoucher) along with DA Form 31, when official travel (such as for PCS or TDY) is involved.

e. The BN S1 will determine chargeable leave when no official travel is performed.

f. Leave will be charged for day of departure unless it is a regularly scheduled duty day and the Soldier worked for more than half of the day.

g. Leave will be charged for day of return unless—

(1) It is a duty day and the Soldier works for more than half of the day.

(2) The Soldier returns on a regularly scheduled non-duty day or on an official Federal holiday.

h. DA Form 4179 should be automated to assist with data collection and search functions. Each page, however, must be printed and maintained in hard copy as it is filled with leave requests.

11–2. Leave control management

a. BN S1 will reconcile DA Form 4179 with the leave transaction input report within one working day of receipt.

b. Discrepancies will be reported to the DMPO by memorandum, using a transmittal to record the transaction.

c. Commanders must review the unit commander finance report (UCFR) on a monthly basis, and file and maintain signed copies in accordance with AR 25–400–2.

d. Leave balances will be checked, and Soldiers maintaining large leave balances will be counseled that they risk loss of leave, in accordance with paragraph 2–2.

11–3. Leave reconciliation

a. Commanders are responsible for ensuring that—

(1) Daily personnel status reports are compared to DA Forms 31.

(2) DA Forms 31 are properly entered on DA Form 4179.

(3) DA Forms 31 are forwarded to DMPOs in a timely manner per this regulation.

(4) DA Forms 4179 are reconciled with unit financial reports.

(5) Reconciliation memorandums are submitted to supporting DMPOs as needed.

(6) Chargeable leave is correctly charged against Soldier leave accounts.

(7) Non-chargeable absences, including pass and administrative absence, are not abused.

b. S1s will ensure that actions in paragraph 11–3*a* are correctly completed in a timely manner.

Chapter 12
Processing Procedures

12–1. Process leave and other types of absence

a. DA Form 31 is used to request ordinary leave and most other absences.

(1) Part I is used to request leave and other absences.

(2) Parts II and III, are used only when emergency leave transportation and travel is authorized.

(3) Do not use Parts II and III for emergency situations when Government paid transportation and travel is not authorized.

b. Soldiers will usually submit leave requests no earlier than one month before scheduled departure date, unless leave dates are believed firm, as in transition, holiday, major family events, and PCS leave.

c. The unit commander or approved designee is the approval authority for ordinary leave under normal circumstances.

d. Chargeable and non-chargeable absences must begin and end on post, at the duty station, or in the location from which the Soldier regularly commutes to duty.

e. Soldiers must be physically present in the local area (defined as on post, duty station, or in the location from which the Soldier regularly commutes to duty) at the beginning and ending of leave. Soldiers who fail to comply are subject to UCMJ action.

f. Usually, the BN S1 will establish and maintain DA Form 4179, which may be automated to assist with data collection and search functions.

(1) Each page must be printed and maintained in hard copy as each page is filled with leave requests.

(2) DA Form 4179 begins with control number "0001" with the first leave in each new FY.

(3) Chargeable leave days are entered from DA Form 31, block 17.

g. Chargeable leave.

(1) The DMPO will determine chargeable and non-chargeable leave when official travel is involved, using DD Form 1351–2 (Travel Voucher or Sub-voucher) together with the DA Form 31.

(2) The BN S1 must reconcile with the DMPO any differences in chargeable leave dates.

(3) When no official travel is performed, the BN S1 determines chargeable leave, noting days and dates in block 17 of DA Form 31.

(4) Leave will be charged for day of return unless—

(a) The day of return is a normally scheduled duty day, and the Soldier works more than half of the day.

(b) The Soldier returns on a regularly scheduled non-duty day or official holiday.

h. Periods of non-chargeable absence, such as administrative absence, are subtracted from the total number of days absent from duty.

i. The DA Form 4179 must be reconciled with the DMPO/DFAS reports.

j. If an error is made on the DA Form 31, correct as appropriate unless the situation requires voiding the form.

k. BN S1 will prepare a DA Form 31 locally, if a copy cannot be obtained for a PCSing Soldier arriving at a new unit with leave enroute.

l. BN S1 will maintain organizational copies of the DA Form 31 in numerical order by FY, and retain them for at least 12 months but no more than 16 months after the leave was completed.

m. DA Forms 31, DA Forms 4179, and any supporting documentation will be secured.

12–2. Process approved ordinary leave through departure and return to same unit of assignment

a. BN S1 receives DA Form 31, and enters leave data on DA Form 4179, adding the control number to DA Form 31, block 1.

b. Retain original and organization copy of DA Form 31 in a suspense file until day before Soldier begins leave.

c. Retain Soldier copy in suspense until day of departure.

d. The BN S1 will void the DA Form 31, when applicable, by drawing a diagonal line through the form, writing "void" through the line, and signing the form in block 17.

e. BN S1 will void the entry on the DA Form 4179, and maintain a copy of the void DA Form 31, in numerical sequence with other DA Forms 31, in accordance with ARIMS.

f. BN S1 may make minor corrections to DA Forms 31, if not voided, noting reason for correction in block 17.

g. BN S1 will query the DA Form 4179 daily, to identify Soldiers due to depart.

h. BN S1 or Staff Duty (after regular hours) will enter departure date, time, and authority, and give a copy of the DA Form 31 to the Soldier before departure.

i. BN S1 will re-suspense original and organization copies until one day before the last day of authorized absence or until duty status changes.

j. If day of departure is a duty day, and Soldier worked more than half of the day, the following day is the first day of travel or leave.

k. If day of departure is a leave day or travel day, post it as the beginning day of leave or travel.

l. Attach organizational copy to the unit transmittal memorandum (UTM) and file in accordance with AR 25–400–2.

m. The DA Form 31 is void when—

(1) Leave is withdrawn or not taken.

(2) Leave begins (Soldier departs local area) before the approved beginning date.

(3) Leave begins after the last day of a previously approved leave, unless there is a duty day in between.

12–3. Process approved ordinary leave upon Soldier's return to same unit of assignment

a. Check DA Form 4179 daily to identify Soldiers due to return from absence.

b. Enter return date, time, and authority on DA Form 31, block 14.

c. Determine chargeable leave dates between date of departure and date of return, if leave is not in conjunction with official travel, and enter dates in block 17. Enter same dates on DA Form 4179.

d. If leave was in conjunction with official travel, file leave form with the DTS voucher in accordance with AR 25–400–2.

e. If leave was not in conjunction with official travel, forward the original DA Form 31 to the DMPO with a UTM within three working days after leave is completed.

12–4. Processing ordinary permanent change of station leave through departure

a. When the BN S1 receives the DA Form 31, enter the leave number on the DA Form 4179.

b. Enter the leave number and "PCS" in block 1 of the DA Form 31, post block 14.

c. Place a copy of the DA Form 31 in the Soldier's out-processing packet.

d. Suspense a copy of the DA Form 31 for submission of the departure transaction.

e. The BN S1 will keep a copy of the DA Form 31 in the suspense file, and give it to the Soldier at out processing.

f. The Soldier hand-carries a copy of the DA Form 31 to the DMPO when out processing.

g. The S1/Adjutant may void the DA Form 31 by drawing a diagonal line through the form, writing "void" through the line, and the S1, personnel sergeant, or commander signing the form in block 17.

(1) Void the entry on the DA Form 4179.

(2) Maintain a copy of the void DA Form 31, in numerical sequence with other DA Form 31, for at least 12 months but no longer than 16 months.

(3) The BN S1 gives the Soldier a copy of the DA Form 31 on day of departure.

(4) Maintain a copy in the BN functional file in numerical sequence with other DA Forms 31, for at least 12 months but no longer than 16 months.

h. DA Forms 31 are void when—

(1) Leave is withdrawn or not taken.

(2) Leave begins before the approved beginning date on the DA Form 31. If the commander approves departure before the "FROM" date on the DA Form 31, the form must be voided and a new DA Form 31 with the correct "FROM" date prepared and signed.

(3) Leave begins after the last day of a previously approved leave, unless there is a duty day between the two leave periods.

i. The PCS departure day is a chargeable day of leave unless it is a normally scheduled duty day and the Soldier works over half of the day.

12–5. Process permanent change of station leave upon reporting to new permanent duty station

a. The installation processing facility and/or BN S1 will arrive Soldiers, entering date, time, and arrival authority on DA Form 31, block 16.

b. If the DA Form 31 is not available, the BN S1 will try to obtain a copy from the losing organization.

c. Reconstruct the DA Form 31 if efforts to obtain a copy are unsuccessful, annotating block 17 as "Reconstructed form."

d. Give a copy of the completed DA Form to the Soldier.

e. Forward the DA Form 31 to the DMPO on a UTM within three days after Soldier reports to the new duty station.

12–6. Process approved leave in conjunction with intra-post transfer

a. A DA Form 31 is required for all intra-post transfers, even if the Soldier departs and arrives on the same day.

b. The BN S1 enters the leave control number and "INTRA–POST" in block 1 of the DA Form 31.

c. The Soldier receives a copy of the DA Form 31 prior to departure.

d. A copy of the DA Form 31 is included in the out-processing packet.

e. The losing organization maintains a copy of the DA Form 31 in accordance with AR 25–400–2.

12–7. Process intra-post transfer leave upon completion of leave

a. The BN S1 or designated leave authority enters date and time of arrival and authority in block 16 of DA Form 31.

b. The gaining unit/BN S1—

(1) Draws one neat line through the losing command's control number on the DA Form 31 and posts the gaining command's control number over the lined-out entry.

(2) If official travel was not involved, determines and posts chargeable leave in block 17, and forwards to the DMPO within three working days after the Soldier arrives.

(3) If official travel was involved, attach the DA Form 31 and TDY orders to the settlement voucher and forward to the DMPO within ten calendar days after the Soldier arrives.

(4) Posts appropriate entries on DA Form 4179.

(5) Files and maintains copies in accordance with AR 25–400–2.

12–8. Process approved terminal leave

a. The BN S1 enters the leave number and "TRANS" in block 1 of DA Form 31, and enters the information on the DA Form 4179.

b. Also enter the leave number and "TRANS" on DA Forms 31 of Soldiers being involuntarily separated and taking excess leave in conjunction with terminal leave.

(1) In block 10a, enter accrued leave.

(2) In item 10b, enter number of chargeable leave days requested.

(3) In item 10c, enter number of non-chargeable days requested.

(4) In block 17 enter, "Soldier authorized non-chargeable excess leave (*date*) to (*date*). Soldier authorized chargeable terminal leave (*date*) to (*date*)."

(5) The BN S1 will suspense the original and organization copy of the DA Form 31 to submit with the departure transaction.

c. When a Soldier is assigned to a location where there is a separation transfer point, attach the original DA Form 31 to a UTM and hand-carry to the DMPO within 48 hours after leave begins.

d. When a Soldier is not assigned to a location where there is a separation transfer point, send the original to the office which will process the final pay at time of Soldier's departure.

e. File and maintain copies in accordance with AR 25–400–2.

f. Give a suspense copy of DA Form 31 to Soldier to hand-carry to the DMPO for the transition briefing. However, for Soldiers being involuntarily separated who are authorized excess leave together with terminal leave, attach suspense copy of DA Form 31 to a UTM and hand-carry it to the DMPO.

g. Give a copy of the DA Form 31 to the Soldier on day of departure.

h. The DA Form 31 will be voided if—

(1) Leave is withdrawn or not taken.

(2) Leave begins before the previously approved beginning date.

(3) Leave begins after the last day of previously approved leave.

i. If the Soldier works over half of the normally scheduled duty hours on the day of departure, the day is not charged as leave.

12–9. Process approved emergency leave through departure with return to same unit

a. DA Form 31 becomes an emergency leave order, and copies are controlled, distributed, and filed according to AR 600–8–105, when parts II, III, and IV authorize emergency leave to a Soldier or to a Soldier traveling with dependents.

b. The governing regulation for Family members authorized emergency leave travel and traveling with the Soldier (sponsor) is AR 600–8–105.

c. In block 17 of DA Form 31 add—

(1) Email address, and telephone numbers, DSN and commercial, of unit.

(2) Email address, and telephone numbers, DSN and commercial, of BN S1.

(3) Email address and telephone numbers of the American Red Cross field office at the installation where the Soldier is assigned.

(4) Toll-free number for the travel office and ATAC: 1–800–582–5552.

d. BN S1 will complete parts II, III, and IV of DA Form 31 as applicable, to include accounting citation.

e. Non-personnel services delivery redesign units, depending on the installation, may obtain an accounting citation from the Garrison G–8.

f. Travel plans are coordinated through the travel/transportation office.

g. DA Form 31 is distributed as follows:

(1) Maintain the original in the suspense file until day before leave begins.

(2) After the Soldier departs, suspense it until leave ends or duty status changes.

(3) Make sure the Soldier has a copy of the DA Form 31 before departing on emergency leave.

h. Void the DA Form 31 if leave is withdrawn or leave is not used.

12–10. Processing approved emergency leave upon Soldier's return to same unit

a. Forward original DA Form 31 to the DMPO with a UTM within three working days after Soldier completes leave.

b. The BN S1 will check the DA Form 4179 daily to identify Soldiers due to return.

c. Either the BN S1 or the staff duty will enter return date, time, and authority in block 10 of the DA Form 31.

d. The BN S1 will use paragraph 6–3*b* to determine chargeable leave and enter leave information on DA Form 4179.

12–11. Reconciling leave

a. When official travel is involved, the DMPO will compute leave charges. The DMPO and BN S1 must reconcile any differences in chargeable leave dates.

b. Reconciliation is required when travel is not involved and chargeable leave days in DMPO reports differ from those recorded by BN S1.

(1) Send the reconciliation memo, with reason for correction, to the DMPO within three working days of discovering the error.

(2) If incorrect data was reported to the DMPO, corrections must also be posted on the DA Form 4179 and on the organizational copy of the DA Form 31.

(3) If the DA Form 4179 is incorrect, line through the incorrect entry and post the correct data.

(4) If the DA Form 31 is wrong, line through the incorrect entry and post the correct data.

c. Attach a memorandum for record per AR 25–50 explaining why the correction was necessary.

12–12. Correcting chargeable leave

a. If the DMPO posted incorrect chargeable leave date to the LES and the data was previously reconciled, submit a corrected DA Form 31 unless leave was in conjunction with official travel.

b. If leave was in conjunction with official travel, the Soldier reports to the DMPO for corrective action.

c. BN S1 updates information on the DA Form 4179, as appropriate—

(1) Use the same control number on the corrected leave form as on the original DA Form 31.

(2) In block 17 of the corrected DA Form 31, enter "Corrected Leave Charge" along with the correct information and the reason the correction is being submitted.

d. Send the corrected DA Form 31 to the DMPO with a UTM within three working days.

e. File and maintain the organization copy in accordance with AR 25–400–2.

f. Provide a copy of the corrected DA Form 31 to the Soldier.

g. Complete the reconciliation process.

12–13. Maintain DA Form 4179

a. DA Form 4179 will be managed locally and all approved leaves will be entered.

b. BN S1 will not use white out, tape over, or use similar means on DA Form 4179.

(1) When an entry needs correction due to the reconciliation process or wrong entry, the incorrect data may be lined through with one neat line and the correct data entered above.

(2) When there is insufficient space to repost an entry over the incorrect data lined through, post correct entry in the next available space using original control number. (Ensure the next entry receives the correct control number.)

c. DA Form 4179 begins with "0001" for the first leave that begins in the FY.

d. Subsequent control numbers are entered consecutively for each approved leave.

e. Corrected entries are identified with a checkmark to the right of the control number.

f. DA Form 4179 is maintained on a daily basis.

g. DA Form 4179 is filed and maintained in accordance with AR 25–400–2.

12–14. Attaching a Soldier on leave

a. Soldiers will not be approved for attachment unless supporting documentation is provided.

b. The attaching unit will process the DA Form 31 of Soldiers to be attached.

c. BN S1 will notify the parent unit by email.

d. If the Soldier is PCS enroute, BN S1 must also notify the gaining unit.

e. Information to include with notification message—

(1) Name and contact information for attaching authority.

(2) Date and time the Soldier arrived.

(3) Copy of attachment orders.

f. If Soldier is applying for hardship separation or compassionate reassignment, refer to governing regulations including AR 614–100, AR 600–8–24, AR 614–200, and/or AR 635–200.

12–15. Processing requests for leave extension

a. The unit commander is the authority for leave extension requests, but may appoint a designee.

b. If request is disapproved, advise Soldier of reason and direct Soldier to return to duty according to original leave authorization.

c. If request is approved—

(1) Soldier will complete block 21 on his or her copy of the DA Form 31.

(2) Confirm the extension by email to the Soldier.

(3) Notify BN S1 of extension, and forward a copy of the written confirmation of extension.

(4) BN S1 annotates block 15 of DA Form 31 in suspense file, attach the written confirmation, and updates DA Form 4179.

d. BN S1 maintains the DA Form 31 in a suspense file until the day before the authorized absence ends.

e. The BN S1 enters return date, time, and authority in block 16 of DA Form 31, then forwards the DA Form 31 to the DMPO within three working days after the Soldier returns to duty.

12–16. Recalling a Soldier from leave

a. The unit commander is the recall authority, but may appoint a designee.

b. Soldiers may be recalled to duty from a leave status due to reasons of military necessity.

c. The unit will initiate recall from leave by contacting the Soldier by telephone at the leave address, if possible, and advising the Soldier to return to the duty station. Confirmation will also be sent by email.

d. The unit must notify the BN S1 of the recall, to determine if orders authorizing reimbursement for return travel and transportation must be issued.

e. The BN S1 will—

(1) Annotate block 17 of DA Form 31 with the day before Soldier's return to duty (if reimbursement is not authorized).

(2) Annotate block 17 of DA Form 31 with the duty date one day before the first travel day (if reimbursement is authorized). Initiate request for orders, in accordance with AR 600–8–105.

(3) Void the leave charge if the Soldier received recall orders within 72 hours after start of leave, and travel time is reasonable.

(4) Annotate DA Form 31, block 17, to show the entire absence as being in a leave status if the Soldier was notified within 72 hours of starting leave, but the Soldier's travel time returning to the duty station is excessive.

f. The unit will issue a new DA Form 31 if Soldier is authorized to resume leave.

DEPARTMENT OF THE ARMY
ORGANIZATION
STREET ADDRESS
CITY STATE ZIP

OFFICE SYMBOL [Date]

MEMORANDUM FOR Chief, Defense Military Pay Office [Name of Installation]

SUBJECT: Discrepancy in Leave Report

1. Reconciliation of the Leave Report dated [dd/mm/yyyy] shows this discrepancy:

   a. Leave Control Number: [xx-####]

   b. Rank/Name: [Rank, Last, First, MI]

   c. DOD ID Number:

   d. Number of leave days charged by DFAS: [##]

   e. Correct chargeable dates: [dd/mm/yyyy] to [dd/mm/yyyy]

   f. Correct number of chargeable days: [##]

2. Request you take necessary actions to correct the Soldier's leave account.

3. [Reason leave charges were incorrect, and why the correction should be made]. Supporting documentation is attached.

4. The point of contact for this request is [list rank/name/phone/e-mail address].

[Authority Line]

[Signature block of S1]

Enclosures:

CF:
1 – Soldier
2 – Company Commander
3 – BN S1

Figure 12–1. Finance reconciliation memorandum

Appendix A

References

Section I

Required Publications

AR 25–50
Preparing and Managing Correspondence (Cited in para 12–11*c*.)

AR 25–400–2
The Army Records Information Management System (ARIMS) (Cited in table 4–1.)

AR 27–10
Military Justice (Cited in para 10–3*c*.)

AR 37–104–4
Military Pay and Allowances Policy (Cited in para 6–2*p*.)

AR 40–400
Patient Administration (Cited in para 7–1*k*.)

AR 55–46
Travel Overseas (Cited in para 8–7*a*.)

AR 600–8–6
Personnel Accounting and Strength Reporting (Cited in para 2–10*b*.)

AR 600–8–11
Reassignment (Cited in para 4–7*h*(4)(*b*).)

AR 600–8–24
Officer Transfers and Discharges (Cited in para 12–14*f*.)

AR 600–8–101
Personnel Readiness Processing (Cited in para 5–12*c*(14)(*e*).)

AR 600–8–105
Military Orders (Cited in para 8–6*c*.)

AR 612–201
Initial Entry/Prior Service Trainee Support (Cited in para 8–3*j*.)

AR 614–30
Overseas Service (Cited in para 4–10*d*(7).)

AR 614–100
Officer Assignment Policies, Details and Transfers (Cited in para 5–8*d*.)

AR 614–200
Enlisted Assignments and Utilization Management (Cited in para 5–8*d*.)

AR 630–10
Absence without Leave, Desertion, and Administration of Personnel involved in Civilian Court Proceedings (Cited in para 2–10*a*.)

AR 635–40
Disability Evaluation for Retention, Retirement, or Separation (Cited in para 4–9*i*.)

AR 635–200
Active Duty Enlisted Administrative Separations (Cited in para 12–14*f*.)

DoD 7000.14–R
DoD Financial Management Regulation (DoD FMR) (Available at https://www.esd.whs.mil.) (Cited in para 2–4*a*.)

DoDI 1327.06
Leave and Liberty Policy and Procedures (Available at https://www.esd.whs.mil.) (Cited in para 2–2*c*(3).)

DoDI 4515.13
Air Transportation Eligibility (Available at https://www.esd.whs.mil.) (Cited in para 4–5*p*(1).)

JTR
Joint Travel Regulations (Available at https://www.defensetravel.dod.mil.) (Cited in para 4–5*p*.)

5 USC 6103
Holidays (Available at http://uscode.house.gov.) (Cited in para 2–7*c*.)

10 USC 671
Members Not to Be Assigned Outside United States Before Completing Training (Available at http://uscode.house.gov.) (Cited in para 8–3*i*.)

10 USC 701
Entitlement and accumulation ((Available at http://uscode.house.gov.) Cited in para 2–2*e*(10).)

10 USC 702
Cadets and Midshipmen (Available at http://uscode.house.gov.) (Cited in para 5–7*c*.)

10 USC 704
Use of leave; regulations ((Available at http://uscode.house.gov.) Cited in para 2–2*c*(1)(*a*).)

10 USC 705
Rest and Recuperation Absence: Qualified Members Extending Duty at Designated Locations Overseas (Available at http://uscode.house.gov.) (Cited in para 5–16*a*.)

10 USC 705a
Rest and Recuperation Absence: Certain Members Undergoing Extended Deployment to a Combat Zone (Available at http://uscode.house.gov.) (Cited in para 4–12*a*.)

10 USC 706
Administration of Leave Required to Be Taken (Available at http://uscode.house.gov.) (Cited incited in para 5–8*b*.)

10 USC 707
Payment Upon Disapproval of Certain Court-Martial Sentences for Excess Leave Required to Be Taken (Available at http://uscode.house.gov.) (Cited in para 1–6*b*.)

10 USC 708
Educational Leave of Absence (Available at http://uscode.house.gov.) (Cited in para 5–12*c*(13).)

10 USC 876
Finality of Proceedings, Findings, and Sentences (Available at http://uscode.house.gov.) (Cited in para 2–3*b*(5).)

10 USC 876a
Leave required to be taken pending review of certain court-martial convictions (Available at http://uscode.house.gov.) (Cited in para 1–6*a*.)

10 USC 1141
Involuntary Separation Defined (Available at http://uscode.house.gov.) Cited in para 5–12*c*(11).)

37 USC 310
Special Pay: Duty Subject to Hostile Fire or Imminent Danger (Available at http://uscode.house.gov.) (Cited in para 1–6*b*.)

37 USC 501
Payments for unused accrued leave (Available at http://uscode.house.gov.) (Cited in para 2–4*b*.)

37 USC 502
Absences Due to Sickness, Wounds, and Certain Other Causes (Available at http://uscode.house.gov.) (Cited in para 5–8*b*.)

37 USC 503
Absence Without Leave or Over Leave (Available at http://uscode.house.gov.) (Cited in para 5–8*b*.)

Section II

Related Publications

A related publication is a source of additional information. The user does not have to read a related publication to understand this publication.

AR 11–2
Managers' Internal Control Program

AR 25–30
The Army Publishing Program

AR 40–501
Standards of Medical Fitness

AR 351–3
Professional Education and Training Programs of the Army Medical Department

AR 380–67
Personnel Security Program

AR 381–12
Threat Awareness and Reporting Program

AR 525–13
Antiterrorism

AR 525–28
Personnel Recovery

AR 600–81
Soldier for Life–Transition Assistance Program

AR 601–2
Army Recruiting Support Programs

AR 601–210
Regular Army and Reserve Components Enlistment Program

AR 601–280
Army Retention Program

AR 621–1
Advanced Education Programs and Requirements for Military Personnel

AR 621–5
Army Continuing Education System

AR 621–7
The Army Fellowship and Scholarship Program

AR 635–8
Separation Processing and Documents

DA Pam 25–403
Guide to Recordkeeping in the Army

DFAS–IN Regulation 37–1
Finance and Accounting Policy Implementation

DoDD 1000.21E
DoD Passport and Passport Agent Services (Available at https://www.esd.whs.mil.)

DTR
Defense Transportation Regulation (Available at www.defensetravel.dod.mil.)

RCM 1102
Execution and effective dates of sentencing, Manual for Courts-Martial, 2019 edition (Available at www.jsc.defense.gov.)

RCM 1209
Finality of courts-martial (Available at www.jsc.defense.gov.)

10 USC 1052
Adoption expenses: reimbursement (Available at http://uscode.house.gov.)

10 USC 1174a
Special Separation Benefits Programs (Available at http://uscode.house.gov.)

10 USC 1175
Voluntary Separation Incentive (Available at http://uscode.house.gov.)

10 USC 1182
Boards of inquiry (Available at http://uscode.house.gov.)

10 USC 1201
Regulars and members on active duty for more than 30 days: retirement (Available at http://uscode.house.gov.)

10 USC 1202
Regulars and members on active duty for more than 30 days: temporary disability retired list (Available at http://uscode.house.gov.)

10 USC 1203
Regulars and members on active duty for more than 30 days: separation (Available at http://uscode.house.gov.)

10 USC Chapter 40
Leave (Available at http://uscode.house.gov.)

32 USC 316
Detail of Members of Army National Guard for Rifle Instruction of Civilians (Available at http://uscode.house.gov.)

32 USC 502
Required Drills and Field Exercises (Available at http://uscode.house.gov.)

32 USC 503
Participation in Field Exercises (Available at http://uscode.house.gov.)

32 USC 504
National Guard Schools and Small Arms Competitions (Available at http://uscode.house.gov.)

32 USC 505
Army and Air Force schools and Field Exercises (Available at http://uscode.house.gov.)

37 USC 481
Travel and Transportation allowances: administrative provisions (Available at http://uscode.house.gov.)

37 USC 504
Cadets and midshipmen: chapter does not apply to (Available at http://uscode.house.gov.)

37 USC 551
Definitions (Available at http://uscode.house.gov.)

37 USC 706
Allotments: Commissioned Officers of the National Oceanic and Atmospheric Administration (Available at http://uscode.house.gov.)

38 USC 3021
Supplemental educational assistance for additional service (Available at http://uscode.house.gov.)

Section III

Prescribed Forms

Unless otherwise indicated, DA forms are available on the Army Publishing Directorate (APD) website (https://armypubs.army.mil).

DA Form 31
Request and Authority for Leave (Prescribed in para 2–9*a*.)

DA Form 4179
Leave Control Log (Prescribed in para 1–4*k*(1).)

Section IV

Referenced Forms

Unless otherwise indicated, DA forms are available on the APD website (https://armypubs.army.mil), and DD forms are available on the Executive Services Directorate website (https://www.esd.whs.mil).

DA Form 11–2
Internal Control Evaluation Certification

DA Form 2028
Recommended Changes to Publications and Blank Forms

DA Form 3349
Physical Profile

DA Form 4187
Personnel Action

DD Form 1351–2
Travel Voucher or Subvoucher

DD Form 1610
Request and Authorization for TDY Travel of DoD Personnel

Appendix B

Internal Control Evaluation

B–1. Function

The function covered by this evaluation is the administration of the Leaves and Passes Program.

B–2. Purpose

The purpose of this evaluation is to assist assessable unit managers, internal control administrators, and test control officers in evaluating the key internal controls outlined. It is not intended to cover all controls.

B–3. Instructions

These key internal controls must be formally evaluated at least once every 5 years or whenever the internal control administrator changes. Certification that this evaluation has been conducted must be accomplished on the DA Form 11–2 (Internal Control Evaluation Certification). Answers must be based on the actual testing of key internal controls (for example, document analysis, direct observation, sampling, simulation, other). Answers that indicate deficiencies must be explained and corrective action indicated in supporting documentation.

B–4. Test questions

a. Is a travel clearance manager designated to supervise the travel clearance function?

b. Do DA Forms 31 include contact information in case the Soldier needs to request a leave or pass extension?

c. Are Soldiers fully briefed on excess leave and/or advance leave before submitting a request for approval?

d. Are Soldiers charged leave for the day of departure if it is on a regular day off or holiday?

e. Did the unit commander review the UCFR on a monthly basis?

f. Were discrepancies between DA Form 4179 and finance reports, such as the leave transaction input report, reconciled on a daily basis?

g. Were discrepancies reported to the DMPO by memorandum, using a transmittal to record the transaction?

B–5. Supersession

Not applicable.

B–6. Comments

Help make this a better tool for evaluating internal controls. Submit comments to U.S. Army Human Resources Command (AHRC–PDF–I), 1600 Spearhead Division Avenue, Department 460, Fort Knox., KY 40122–5504.

Glossary

Section I

Abbreviations

ACOM
Army command

AIT
advanced individual training

APACS
Aircraft and Personnel Automated Clearance System

APOD
aerial port of debarkation

APOE
aerial port of embarkation

AR
Army regulation

ARIMS
Army Records Information Management System

ASA (M&RA)
Assistant Secretary of the Army (Manpower and Reserve Affairs)

ASCC
Army service component command

ATAC
Army Travel Assistance Center

AWL
absent without leave

BCT
basic combat training

BN S1
battalion S1

CENTCOM
U.S. Army Central Command

CLV
convalescent leave

CONUS
continental United States

COT
consecutive overseas tour

CSP
Career Skills Program

DA
Department of the Army

DCS
Deputy Chief of Staff

DEERS
Defense Enrollment Eligibility Reporting System

DEROS
date eligible for return from overseas

DFAS
Defense Finance and Accounting Service

DMPO
defense military pay office

DoD
Department of Defense

DoDD
Department of Defense directive

DoDI
Department of Defense instruction

DRU
direct reporting unit

DSN
Defense Switched Network

DTS
Defense Travel System

EDLA
educational leave of absence

ELA
emergency leave of absence

EML
environmental morale leave

ETS
ending term of service

FCG
Foreign Clearance Guide

FEML
funded environmental morale leave

FY
fiscal year

GCMCA
general court-martial convening authority

HFP
hostile fire pay

HQUSAPDA
U.S. Army Physical Disability Agency

HRC
U.S. Army Human Resources Command

IADT
initial active duty for training

IDP
imminent danger pay

IPCOT
in-place consecutive overseas tour

ISAA
involuntary separation administrative absence

ISC
input source code

ISOPREP
Isolated Personnel Report

LES
leave and earnings statement

MEPS
military entrance processing station

MOS
military occupational specialty

MPD
military personnel division

MPLP
Army Parental Leave Program

MTF
military treatment facility

NCR&R
non-chargeable rest and recuperation

OCONUS
outside the continental United States

ORDTGC
order date to gaining command

PCS
permanent change of station

PDMRA
post deployment or mobilization respite absence

PDS
permanent duty station

PDUSD (P&R)
Principal Deputy Under Secretary of Defense (Personnel & Readiness)

PEB
Physical Evaluation Board

PEBLO
Physical Evaluation Board liaison officer

PMS
professor of military science

R&R
rest and recuperation

RC
Reserve Component

RCM
Rules for Court-Martial

REFRAD
release from active duty

ROTC
Reserve Officer Training Corps

RRS–A
Army Records Retention Schedule-Army

SES
senior executive service

SLA
special leave accrual

SLB
saved leave balance

STEP
Smart Traveler Enrollment Program

TAA
transition administrative absence

TAP
Transition Assistance Program

TCS
temporary change of station

TDY
temporary duty

TRADOC
U.S. Army Training and Doctrine Command

UCFR
unit commander finance report

UCMJ
Uniform Code of Military Justice

USARC
U.S. Army Reserve Command

USC
United States Code

UTM
unit transmittal memorandum

Section II

Terms

Administrative absence
A non-chargeable absence; another term for Leave of Absence, previously called permissive TDY.

Adoption, qualifying
A qualifying adoption is arranged by a "qualified adoption agency" as that term is defined in 10 USC 1052.

Birth Event
Any live birth of a child(ren) to a Soldier (or spouse). Multiple births resulting from a single pregnancy (for example, twins or triplets) will be treated as a single birth event so long as the multiple births occur within the same 72-hour period. Multiple births that do not occur within the same 72-hour period will be treated as separate birth events (in this case, maternity convalescent leave and primary or secondary caregiver leave must run concurrently but before expiration of the leave).

Birth Parent
The parent who gives birth.

Deployment
A TCS or TDY to an area where the Soldier is entitled to HFP/IDP.

Leave of absence
A non-chargeable absence; another term for administrative absence, previously called permissive TDY.

Maternity Convalescent Leave
A 6-week convalescent period for a military member immediately following pregnancy and childbirth. Maternity convalescent leave, as with any convalescent leave, is non-chargeable. It will begin on the first full day after the date of discharge or release from a hospital (or similar facility) following childbirth.

Military Parental Leave
Any combination of the three types of non-chargeable leave associated with childbirth or adoption (maternity convalescent leave, primary caregiver leave, and secondary caregiver leave). The collective program under which these types of non-chargeable leave occur is known as the Military Parental Leave Program.

Operational Deployment
An operational deployment begins when the majority of a unit or detachment, or an individual not attached to a unit or detachment, departs home port, station, or base, or departs from an enroute training location to meet a Secretary of Defense-approved operational requirement. An event is an operational deployment if it is recorded in the Joint Capabilities Requirement Manager or Fourth Estate Manpower Tracking System and is contained in the annual Global Force Management Data Initiative compliant tool under the Global Force Management Data Initiative reporting structure specified in Department of Defense Instruction 8260.03 (The Global Force Management Data Initiative). Forces deployed in support of execute orders, operational plans, or concept plans approved by the Secretary of Defense are also considered operationally deployed. An operational deployment ends when the majority of the unit or detachment, or an individual not attached to a unit or detachment, arrives back at their home port, station, or base. Forces operationally employed by Secretary of Defense orders at their home station or in "prepare-to-deploy" status at home station are not operationally deployed.

Permissive temporary duty
A term previously used for non-chargeable absences which are now referred to as Leave of Absence or Administrative Absence in accordance with DoDI 1327.06.

Primary Caregiver
The parent with the primary responsibility for caring for a child, in most cases the nonmilitary parent, in the case of a qualifying birth event or adoption. In some cases, the covered military member, including an unmarried non-birthparent with proof of parentage, may be designated as the primary caregiver. Such cases may include, but are not limited to, situations where the covered member is the birthparent, dual military couples where one member of the couple is designated as the primary caregiver, the unavailability or incapacity of the birthparent if the birthparent is not a military member, the death of the other parent, or other circumstances where the covered military member must act as primary caregiver.

Primary Caregiver Leave
A 6-week period of non-chargeable leave granted to a designated primary caregiver for the care of a child obtained through a qualifying birth event or adoption.

Proof of Parentage
Birthparents are not required to establish proof of parentage. Other unmarried Soldiers desiring designation as a primary or secondary caregiver for a qualifying birth event must establish parentage per criteria prescribed by DEERS. Proof of parentage may include, but is not limited to, being listed (with consent) as a parent on the child's birth certificate or other Government-issued document and written acknowledgment of an obligation to support the child, either by voluntary agreement or court order. Registration within DEERS must occur within 30 days of the birth.

Secondary Caregiver
The parent who is not designated as the primary caregiver. Secondary caregiver leave may be approved for an unmarried, non-birthparent if that member's parentage of the child is established in accordance with criteria prescribed by the Secretary concerned.

Secondary Caregiver Leave
A 21-day period of non-chargeable leave granted to a designated secondary caregiver for the care of a child obtained through a qualifying birth event or adoption.

Surrogacy
An agreement by a woman to undergo pregnancy so as to produce a child who will be surrendered to others.

TRICARE
The health care program serving Uniformed Servicemembers, retirees, and their families worldwide.